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# THE FALLOUT

## The Fight Over Nuclear Waste on Yucca Mountain

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# CAUSE FOR AL

## Swatting at Yale and Beyond

BY **PHOENIX BOGGS**

**IT WAS THE MONDAY NIGHT** before classes were set to begin for Yale's spring semester. Many of the students living in Bingham Hall, one of the first-year dorms on Yale's Old Campus, had made an effort to sleep early in preparation for the next morning. Classes were beginning on a Tuesday this year because Monday, January 16, was Martin Luther King Jr. Day.

But at 12:30 a.m. on Tuesday morning, police descended onto Old Campus, surrounding the Bingham Hall dorms. Zach Sculin, a first-year living in Bingham, described waking that night to the sound of sirens.

"I looked out my window and saw a line of cop cars on Chapel Street. There were police officers shining lights into our windows," Sculin recalled. "I was just like, whoa, what's happening?"

The officers began to enter the building, knocking on doors and waking students. Before long, the campus was abuzz with confusion and fright.

"Our [first-year] counselor texted us and told us to lock our doors. We didn't know anything about what was happening," Sculin said. "Our rooms didn't personally get searched, but I had friends who were woken up by police searching their rooms. They were professional about it, but it was scary. People didn't know what the hell was going on."

Students relied on their phones to search for information about the event. At 2:30 a.m., Yale Police sent out an update to all Yale students, and Bingham Hall residents learned for the first time that the incident was likely false in nature. The police had been misled by a "swatter."

**"SWATTING" IS A RELATIVELY NEW** and informal term. Today, it is widely used by police and media outlets to refer to crimes like this one, but it isn't recorded in many statistics as a unique category of crime. "Swatters" contact emergency services pretending to be victims or perpetrators of invented violent attacks, directing police toward their targets—often schools or private homes.

Swatting differs from the general crime of making a false report insofar as swatters seek to use emergency services as a tool to scare or victimize someone. The goal of many non-swatting crimes within the false reporting category is to incriminate a targeted individual. Swatters, however, have no interest in having their victims accused, arrested, or convicted of a crime. The goal of a swatter is simply to cause an aggressive police descent in real time.

The FBI has had "swatting" on its radar since at least 2008, but it is hard to trace the history of a crime that lacks its own reporting category; there is no nationwide count of swatting incidents. The crime gained a name of its own, distinct from general false reporting, in the context of online gaming communities.

Kevin Miller, a member of the Ohio House of Representatives, has worked to sponsor legislation against swatting. He emphasized that the birth of "swatting" originally occurred in these small online circles.

"Originally, in the gaming community, it was a big joke. Because these folks that are playing from all over can actually see the people that they're playing with face the consequences," said Miller. "They call a fake emergency in, and then the door behind the other guy gets busted in. It was a joke to them."

In October 2022, there was a rash of 16 swatting incidents that occurred in a

# "The first thing that I did was back home and say, 'Police are what's going on. I love you all very much.'"

single day in the state of Florida. Matt Cohen, who writes for the *Tampa Bay Times*, reported on the event. Cohen felt that because these calls targeted schools, there was an extra layer of fear injected into the situation.

"Sure, it's not a real shooting. But in that moment, you think it's real. If you're in second grade, that's scary as hell. Even in high school it's scary," Cohen said.

The suggestion of gun violence in school is a specific tactic swatters use to strike fear into students, teachers, and communities. During Yale's Old Campus incident in January, the police descent was not the only intimidating factor. Rather, students had to contend with the fear of a real shooter in the building.

"I think the reason it scared people so much was because at first, we thought it was a student," said Sculin, the Bingham Hall resident. "So we were thinking that there was a student in the building who was a threat. I know that some people went back home for the next few nights because they were scared."

For other students, the late-night police entrance was itself shocking. One Bingham first-year, who wished to remain anonymous due to the sensitive nature of his experience, spoke about waking up to officers inside his dorm.

"I just woke up around 12:30 to people screaming, 'Put your hands where we can see them!' At first, I couldn't even tell it was police. I thought someone was forcing their way in to rob us," the student said.

Once he learned that police were there to respond to a threat, it introduced a new dimension of anxiety.

"The first thing that I did was text my mom and family back home and say, 'Police are here. I don't know what's going on. I love you all very much.'"

Texts like the one sent by that student, when combined with media coverage, police releases, and civilian footage, contribute to swatting's wider effects. Swatting calls do not victimize only those in the targeted building. Rather, they create a chaotic situation that reverberates into the surrounding community.

"When a swatting call is made against a school, think of the people involved. You have the administration, the teachers, the children. They're barricading doorways. They may be fleeing the building. The emotional toil on those kids is tremendous, and then you can add another layer: those kids all have electronics, right? They're texting their parents, and the parents start racing toward the school. So the levels of chaos and trauma from an incident like this are very significant," Miller said.

The police mobilization that swatting causes can have dangerous consequences even for those not in the targeted building. When police respond to a true emergency call, the speed and intensity of the response can have harmful effects. And when the call is fake, that risk is incurred on the community with no justification.

"When you have an officer that is being dispatched to what they believe is an actual shooting in progress, they're racing to the scene. So they're putting the public at risk unnecessarily because they're trying to get there in a hurry," said Miller, noting that harm to the community as a result of a police response is one of the most significant secondary consequences of swatting.

Furthermore, the mobilization of police resources in response to a potential shooting or other large-scale violent incident represents a significant financial cost to taxpayers.

"As you might imagine, when you start taking into account all of the police agencies that respond to these types of incidents, all of the officers who are called in or held overtime, it can get very expensive," said Miller.

Depending on the area and time of the call, a significant police deployment (such as a SWAT team rollout) can cost thousands of dollars an hour. Especially in disadvantaged or rural communities, swatting calls can create a significant financial burden.

Some law enforcement experts have noted that a preponderance of swatting cases could discourage police from re-

# text my mom and family

# e here. I don't know

sponding to emergency calls—even when they are serious. Professor Ted Wittenstein, who teaches in the Yale Jackson School of Global Affairs and is an expert in cybersecurity and national security, noted that police agencies have already been forced to grapple with this dilemma.

"I think there is a growing awareness that you have to respond, even if you're skeptical about the cause. You have to do your due diligence to protect the community as best you can. This is part of the challenge. You have to take everything seriously, knowing at the same time that someone may be abusing your desire to take it seriously," said Wittenstein.

**EXPERTS HAVE THEORIZED** that the chaotic and fearful atmosphere created as a result of a swatting call is the ultimate goal of many swatters. When Cohen reported on the swatting phenomenon in Florida, he saw a desire for attention cited as the motivating factor behind many swatting calls.

"Swatters know that the media is going to cover something like that. They're going to see what they did in the newspaper or on TV. They may even be able to see all of the cop cars show up," Cohen said. "They can say, 'Hey, look what I did!' There's a certain feeling of power that comes from creating that response. And that can fuel people in a very sick way."

But sometimes the motivation of a swatting call can be distinct from a simple desire for importance. In recent years, swatting has been used to make political and hateful statements. Wittenstein noted that swatting has evolved from a dangerous online prank to an orchestrated extremist tool.

"There's a growing recognition that this could be used against certain discriminated groups as a tool of repression. It's a tool that extremists can use to impose their—often misguided—political beliefs about individuals or organizations," Wittenstein said. "Given the prevalence of some of these extremist online communities, it's also become a way that you can gain appeal or attraction among other extremists."

Cohen saw the 16 swatting calls made against Florida schools in October as a part of this phenomenon. While the calls at first appeared to be random, over time it became clear that they were part of a larger pattern with political motivations.

"There was a belief that because so many of the calls sounded similar, they had to be connected in some manner. And it didn't feel like a coincidence that all of these fake school shooting threats were called in on the same day that the Parkland shooting trial started," said Cohen. "Was there an intent to scare people on a day that was traumatic for many? It wouldn't shock me."

The Old Campus incident is another example of how swatting can be an instrument of hate. According to Yale Police, the swatter used anti-Black racial slurs on the phone and timed his call in order to evoke fear on the night of Martin Luther King, Jr.'s birthday celebration. The swatting call was not only an attempt to scare students in their dorms, but also a tactic of racial intimidation that underscores swatting's recent hateful manifestations.

**SWATTING HAS CERTAINLY EVOLVED** from its initial conception as a "prank" played between online gamers. However, a discussion of whether the problem of swatting as a whole is new or worsening is complex. In some ways, swatting is simply a novel name for a crime that has always existed.

"The phenomenon of people abusing emergency services and police functions by targeting people or organizations or institutions, to my knowledge, is not new at all," said Wittenstein. "I think it's certainly been in the news more within the last decade, maybe even the last five years."

In the early 2000s, there were a few high-profile swatting cases that helped to stir up media interest in the "novel" crime. But reports of surges in swatting have mostly occurred in the last ten years. Kevin Kolbye, a swatting expert formerly with the FBI, estimated that annual swatting incidents surged from roughly 400 in 2011 to more than 1,000 in 2019.

Whether these estimates accurately reflect the number of swatting incidents is uncertain. Ten years ago, most people had never heard of the act of targeting people through phony emergency services calls (whether it was called "swatting" or not). Heightened attention might mean that more swatting incidents are being categorized as such, causing the apparent surge in cases.

The rise in reported swatting cases may also stem from the increasing ease with which swatting calls can be carried out today. Modern tools, such as the ability to "spoof" calls or hide one's IP address, as well as greater access to internet privacy protections, have made it easier for swatters to evade police investigation.

A number of different techniques can be used to "spoof" a call. There are even some online spoofing companies that charge a fee in return for obscuring one's Caller ID. In 2018, 70% of all scam calls in the United States employed spoofing to falsify caller identification. In the context of a scam call, the technique is often used to make a scammer's number appear familiar or trustworthy. But when this technology is applied to swatting calls, it can enable swatters to avoid identification and arrest.

On another level, more widespread internet use has also expanded the pool of potential swatting victims. Often, these incidents are called in against people's private homes or workplaces, and the personal information needed to perpetrate these attacks is becoming more available for more people in the digital age.

"Personally, I think you should assume that any information that you put in emails or texts or on your social media is potentially accessible to the public, either by accident or through malicious cyber activity. That's a function of the world we live in. There's no such thing as 100% cybersecurity," said Wittenstein.

However, Wittenstein again cautioned against the idea that swatting is a unique or novel phenomenon, emphasizing that modern cyber tools are simply a new mode of transmission for an old crime.

"I definitely think that cyberspace and social media and internet connectivity have magnified and accelerated this phenomenon," said Wittenstein. "But it accelerated an underlying problem, it didn't create a new problem. This is an issue that has long existed."

**THE DEBATE OVER** the appropriate response to the "swatting problem" is as complicated as the problem itself.

A number of local and national legislators have attempted to clarify the appropriate legal response to swatting. Miller, the Ohio representative, was one of the first state legislators to introduce a bill designed to stiffen swatting sentences.

"In my bill, if someone is injured as a result of a swatting incident, that's a second-degree felony. That's significant, and it carries significant prison time. If no one is injured, it's a fourth-degree felony. We want folks to know that this is really serious," said Miller. Ohio Governor Mike DeWine signed Miller's legislation into law at the beginning of 2023. It will take effect in Ohio in April.

Increasing the penalties for those convicted of swatting attacks has been a popular legislative response to the problem. In 2015, Representative Katherine Clark (D-MA) sponsored a bill in the U.S. House of Representatives designed to accomplish a similar goal. While the bill did not pass, it sparked a conversation about swatting and its consequences, especially when, in an apparent act of retribution, Clark was swatted in her own home a year later. (No one was hurt in the incident.)

Miller is supportive of continued legislative efforts to bring attention to the problem. "If more states adopt legislation like this, it speaks to the importance of the issue, and it creates greater awareness of the seriousness of the crime," he said.

Some critics of legislative approaches, however, have pointed out that anti-swatting laws mostly focus on how to punish swatters once they have been apprehended. They note that one of the factors that makes swatting such a difficult issue is that swatters are not easy to track down.

Miller admitted that modern tools make it difficult for police to find and apprehend those who perpetrate swatting incidents. "It's not uncommon to not be able to identify the people who commit these acts, because of the technology they're working with," he said. "You can use spoofed numbers and other tools. My understanding is that a lot of times these calls come from other countries, as well."

Although months have passed since the rash of swatting calls perpetrated against schools around Cohen's office at the Tampa Bay Times, he had not heard of any police progress in finding the perpetrators of the attacks.

"I still don't think there have been any names or arrests that have come out of those incidents. Because how do you trace where these calls come from?" Cohen wondered.

That is why, beyond punitive deterrents, one of the most popular suggested responses to swatting has been investing in technology that can be used to crack swatters' privacy tools.

"New technologies that allow you to identify or locate those who email or call or message false information with malicious intent are very relevant," said Wittenstein. "And developing those and pushing them into the hands of law enforcement professionals is important."

But Wittenstein mused that the heightened focus on swatting right now might be misguided. He emphasized that, instead of focusing on this one crime, it is important to acknowledge the broader issues at play in the modern field of cybersecurity.

"Yes, swatting is serious. But is it more serious than how vulnerable you can be to all other forms of harassment online or in real life?" said Wittenstein. "Rather than focusing on this one very serious issue, it's important to increase our awareness of all of these vulnerabilities."

Wittenstein and other experts have found aspects of the media coverage of swatting troubling, pointing out that greater awareness about swatting may inadvertently inspire copycats.

"Sometimes there's a risk of over-drawing attention to the problem. That doesn't mean it's not a problem," Wittenstein said. "But unfortunately, when you highly publicize certain types of criminal activities, it does carry the risk of inspiring fringe individuals to want to partake."

As a reporter, Cohen has his own concerns over how to effectively share information about swatting events without inspiring potential swatters.

"Does covering these incidents give swatters the attention that they want? But is not covering them a disservice to our readers? It's an interesting balance. In the short term, I think it's good to cover because some people don't know about it," Cohen said. "But a year or two down the road, are we going to be helping anyone by telling people, 'Hey, cops went to X location today?' Honestly, I don't know."

For its victims, swatting is a crime that robs a sense of safety from everyday life, even when no one gets injured. When the Yale Police Department released its statement at 2:30 a.m., police were still present in the building, knocking on doors. Still, the Bingham student whose room had been searched felt some relief.

"When they told us that they thought it was a false incident, I was just very happy we were safe," he said. "Because when you don't know anything, it's scary. You're thinking, 'Are people hurt?'"

*"Does covering these incidents give swatters the attention that they want? But is not covering them a disservice to our readers?"*

# Sonnenfeld's Data War

## A Yale Professor Takes On Putin

BY **AVA LEIPZIG**

**HOW DOES A PROFESSOR** become an enemy of the Russian state? How does a team of Yale students become a premier economic intelligence research engine? How does that professor and his small but mighty team galvanize a corporate exodus, lacerate Putin's purse, and shatter the Kremlin's veneer of strength?

The answer unfolds in the corner of the Yale School of Management (SOM), where sunlight beams through the glass walls into the office of Professor Jeffrey A. Sonnenfeld. His office is 4,800 miles away from the battlefield in Ukraine, but Sonnenfeld is at the front line of the war. Sonnenfeld, who is the SOM's Senior Associate Dean for Leadership Studies, Lester Crown Professor in the Practice of Management, and founder and president of the Chief Executive Leadership Institute, wields a portfolio of strategic weapons of his own creation.

Jeffrey A. Sonnenfeld

**SONNENFELD'S FIRST STRATEGIC WEAPON** is the "Russia list": a public record of companies' engagement with Russia that sparked a mass corporate exodus. The Russia list leveraged Sonnenfeld's background and expertise. In 1981, Sonnenfeld advocated for corporate social responsiveness and impact with his book *Corporate Views of the Public Interest*. Then he began encouraging corporations to put into practice the idea that "doing good isn't antithetical to doing well." On issues ranging from voting rights to cancer control and eradication, Sonnenfeld has pushed companies to realize that society is a significant stakeholder in their businesses and they should take actions that align with their values.

In the wake of Russia's invasion, Sonnenfeld observed that twelve companies — including several companies whose CEOs Sonnenfeld knows well — had taken rapid and unprecedented action to withdraw from Russia. Meanwhile, other companies made empty announcements about their support for Ukraine and were celebrated to the same degree as those who had made material sacrifices and permanently closed stores and factories in Russia. "Many causes [begin with] a core of really noble players working hard, assiduously, with no self-interest," Sonnenfeld explained. "But it often gets flooded by people who hijack a good cause and start to use it for their own fundraising, careerist ambitions, and wind up ruining — or certainly diluting — the power of the movement." Sonnenfeld wanted to separate the heroes from the imposters, applaud the first movers, and encourage other companies to act.

In late February 2022, Steven Tian — Sonnenfeld's right-hand man, Research Director at the Chief Executive Leadership Institute, Yale alum, and former Wall Street analyst — began tracking companies' withdrawal announcements and compiling a public record of companies' engagement with Russia. Day by day, more companies made the decision to withdraw. In order to track the barrage of announcements, Sonnenfeld and Tian needed to expand their team. The pair initially recruited Sonnenfeld's teaching assistants from his class at the SOM, then recruited business school students and volunteers from Yale's Executive MBA program. The team of volunteers researched companies that made withdrawal announcements and confirmed that they were actively ending their operations in Russia. With an expanded team, the list grew rapidly from a few dozen companies to over 100 within

"To have such a large number of companies leave would be a major impact for any country. And to have a country that is so dependent on Western expertise and investment, that just flies in the face of any rosy economic projection."

a month.

Then, the list went viral: the website received upwards of 60 million hits. "We started to see a stampede of companies exiting Russia," Sonnenfeld said. Consumers, employees, and shareholders cared about companies' moral stances and paid attention to their level of engagement with Russia. "As the number of people and policymakers across the world following [the list] grew, companies realized that this would have an impact on their reputational capital," said Yash Bhansali '23, who has contributed to Sonnenfeld's research.

After reading about the list, many Yale students — both those with a strong connection to the conflict and region and those who were deeply moved by the humanitarian crisis — approached Sonnenfeld to get involved. Existing team members recruited friends with regional expertise and language skills. Members of the research team spoke Russian, Polish, German, Uzbek, French, Spanish, Italian, Mandarin, Japanese, Urdu, and Sanskrit. "We had a team of 40 researchers reading newspapers in 20 languages to see which companies were withdrawing versus still operating [in Russia]," said Georgia Hirsty MBA '22.

Hirsty is the CEO of a boutique consulting firm by day and a "defender" of the Russia list by night. When companies claim that their classification on the Russia list is inaccurate and subsequently threaten to sue for defamation, Hirsty responds with evidence and forces them to back down. Other members of Sonnenfeld's research team have similarly varied backgrounds. Michal Wyrebkowski, a sophomore at the University of Pennsylvania, is a quadrilingual energy scholar whose data collection methods were "inspired by Alexei Navalny and Bellingcat." Franek Sokolowski '25 is a Yale student from Warsaw fluent in the Russian, Polish, and Baltic languages. Along with Yale doctoral student Wiktor Babinski, Sokolowski led teams reading local Russian publications and helped direct operatives on the ground in Russia to photograph and video company operations and transactions.

Sonnenfeld encouraged students to take ownership of the project. "Because the situation was unraveling as we were working, anyone who had a new idea would go work on that immediately," Bhansali explained. Under the guidance of Sonnenfeld and Tian, Steven Zaslavsky MBA '22, Ryan Vakil '25, and Bhansali co-authored a paper on the financial incentives for companies to withdraw from Russia. They demonstrated that investors feared the financial, operational, and reputational risks of operating in Russia. As a result, companies that withdrew had higher stock returns than those that did not.

The list expanded to nearly 300 companies. As a result of the list's publicity, Sonnenfeld received 200 anonymous tips about companies secretly continuing their operations in Russia. Wary that the whistleblowers may have been disgruntled employees, competitors, or self-promoters, research volunteers divided into groups to track down leads and confirm the status of companies' operations in Russia. Additionally, companies began announcing that they would "curtail future investments" in Russia, so that they could improve their image without taking financial risks. "[These] future investments had never been specified before: we never knew how much, what product lines, what parts of the country. What are you not going to do that you were not going to do before?" Sonnenfeld challenged. Legally obligated to recognize "curtailed future investments" as a form of "disengagement" from Russia, Sonnenfeld expanded the Russia list's classification scheme. Sonnenfeld's new five-part "A-F" letter grade scale rewarded companies who withdrew completely with A's, criticized companies who merely "curtailed future investments" with D's, and exposed companies who failed to act with F's.

Corporate exodus also sends a unique signal of condemnation that has the potential to change Russia's behavior. "I had spent some time with [renowned South African anti-apartheid activist] Bishop Desmond Tutu," Sonnenfeld explained. "[He] told me that corporate pullouts were [just as critical as] the economic blockade through government sanctions. In fact, just over the weekend, a biographer of President Nelson Mandela told me that the corporate pullout — Mandela thought — was more important than the government sanctions. The idea of individual private sector decisions couldn't be read as geopolitical spite. In the case of South Africa, the Afrikaaners were feeling that they were just being vilified and somehow victimized by the West, which was envious of their resources. When these individual companies were pulling out of this rich market, they saw this was serious and they in fact were being seen as a rogue nation and pariahs in the global community."

"[South Africa] was the high-water mark — that was the historic stampede of exits — where there were 200 companies," Sonnenfeld said. Defying even Sonnenfeld's expectations, the Russia list grew to over 1,300 companies and catalyzed a monumental corporate exodus. Within months, Russia lost a multitude of companies comprising 40% of its GDP.

# “We were finding early data to support [Russia’s] industries were slowing up 6 disappeared. The spigot was turned off

**IN APRIL 2022,** facing escalating economic pressure, Putin believed that he could fracture Western resolve by convincing governments and businesses that their sacrifices were futile. Putin fabricated a narrative — that Russia’s economy was resilient to all forms of external economic pressure — and put the propaganda machine to work. “Journalists were being actively fed and starting to fall victim to Putin’s spin that this had no consequence on his economy, because he was manufacturing false information,” Sonnenfeld said.

There was reason for journalists to have faith in the Russian Federal State Statistics Service (Rosstat), as it had traditionally been a reliable and trustworthy source. However, in the wake of the Russia invasion, Putin’s flock of new political appointees changed Rosstat’s accounting methodologies in a disingenuous way, reduced the frequency of their reporting, and selectively published favorable statistics while concealing unfavorable numbers. Yet, the International Monetary Fund (IMF) used Rosstat’s manufactured data to forecast that the Russian economy would contract by a mere 3.4% in 2022 and rebound in the following year. In both public and academic circles, Putin’s resiliency narrative was gaining false legitimacy.

Sonnenfeld’s gut instinct told him that these statistics and projections were wildly off the mark. More importantly, he understood that companies would restart their operations in Russia if they learned that the Russian economy was resilient to their withdrawals. To respond to Putin’s disinformation campaign, Sonnenfeld realized he needed to develop a second strategic weapon: data and a research paper revealing the true state of the Russian economy.

“We were finding early data to support that, in the first quarter, [Russia’s] industries were slowing up 60-90%, but then that information disappeared. The spigot was turned off from the Rosstat,” Sonnenfeld said. From the Russia list, Sonnenfeld and his team knew that hundreds of companies had withdrawn from Russia, making them skeptical of the IMF’s projections. “To have such a large number of companies leave would be a major impact for any country. And to have a country that is so dependent on Western expertise and investment, that just flies in the face of any rosy economic projection,” explained Andrew Kaiser, a member of Sonnenfeld’s research team and a leading expert on corporate engagement in Russia. While blatantly false, these projections began cracking at the foundation of the corporate exodus Sonnenfeld had galvanized through the Russia list.

Since the official Russian statistics were unreliable, Sonnenfeld challenged the team to piece together data from non-governmental data sources and analyze the Russian economy at a granular level. Kaiser recalled how Sonnenfeld began asking questions to investigate each component of the Russian economy: “Could you look at automotive sales? Could you look at how many countries are still producing and currently running plants in Russia? Could you look at where they could possibly be selling their oil? What is the existing energy capacity if they’re slowing down gas through the European pipelines?”

The research team focused on investigating six topics that together would depict the true state of Russia’s economy: natural gas and oil exports, trade relationships, consumption and production data, business withdrawals and the talent flight, fiscal and monetary policy, and financial markets. “It was like managing an orchestra because there were so many moving parts,” Tian said. Given the high stakes of the research, the team needed to have a high level of certainty in their findings — even when working on a tight timeline. “[The research] impacts the course of the conflict in Ukraine, how the conflict is perceived by the American people, and the data that policymakers have to work with when they are making decisions that have massive impact,” Tian said. “Whenever you are going up against conventional wisdom, you have to make sure your case is ten-times stronger than anyone else’s.”

The team knew that energy would be the centerpiece of their research since oil and gas constitute 45% of Russia’s government budget revenue and thereby help to finance the war in Ukraine. Despite punitive sanctions on Russia’s oil and gas exports to Europe, Putin claimed that he was able to sustain pre-invasion levels of oil and gas revenue by “pivoting to the East” and exporting oil and gas to India and China.

But, in contrast to the United States’ liquified natural gas (LNG) exports, which can be shipped via tankers, Russia’s natural gas typically travels through pipelines. Russia could only “pivot” its gas exports if its pipeline network connected to China and India. From a University of Pennsylvania class on the geopolitics of Russian energy, research team member Michal Wyrebkowski was well-versed in Russia’s natural gas industry. Wyrebkowski translated articles from Russian energy journals to collect data on the routes and capacity of operating pipelines, pipelines under construction, and proposed pipelines. By plotting the pipeline routes on a map, Wyrebkowski realized that the Eastern pipeline network had no connections to the Western grid. “As we connected the dots, we clearly saw the pieces fall in place,” he said. “Russia’s position as an energy exporter was falling apart.”

Short of building expensive and extensive pipeline networks, Russia’s only option to export its gas outside of Europe was to produce LNG. However, LNG currently comprises only 10% of Russian gas

# t that, in the first quarter, o-90%, but then that information f from the Rosstat."

exports. Wyrebkowski explained that expanding LNG exports would require expertise and technology from the West, expertise that Russia could no longer access because almost all of Russia's former Western business partners have withdrawn from the country. Furthermore, Russia would have a difficult time financing any capital expenditures. "Russia was blocked out of many liquid credit markets and investors [did] not want to touch Russian markets," Bhansali said. The evidence was abundantly clear: Russia could not "pivot" its steel pipelines, nor build expensive and advanced infrastructure overnight, without a magic wand.

Russia also faced obstacles pivoting on oil sales. Robert Hormats, who served as Under Secretary of State for Economic Growth, Energy, and the Environment from 2009-2013, explained that Western sanctions put pressure on the profit margins for Russian oil. While India and China were buying additional Russian oil, Hormats explained that "those countries are smart enough to recognize that there is a buyer's market and they are getting, for the most part, very substantial discounts for the oil they buy from the Russians." Compared to Saudi Arabia, Russian oil companies have a high extraction cost, due to their old and inefficient equipment, as well as the geographic constraints to extracting oil in the permafrost-laden Arctic Tundra. The hefty cost of Russian oil production and the reduced market rate further strained an already narrow profit margin. Though Putin's pivot enabled Russia to generate a similar volume of oil sales, Russian profits dropped substantially.

While one group of researchers was focused on Russia's unraveling position as an energy exporter, another group was concurrently focused on another key component of Russia's economy: trade. Stephen Roach, the former chief economist at Morgan Stanley and chair of Morgan Stanley Asia, guided the research team. "What I advised them to do, given their instinct that the Russian statistics may not accurately reflect the true state of the Russian economy, is to triangulate on the Russian economy by using other official data from countries engaged through trade and other kinds of technical assistance to Russia, so that their data can tell the story that Russian statistics may not accurately reflect," Roach said.

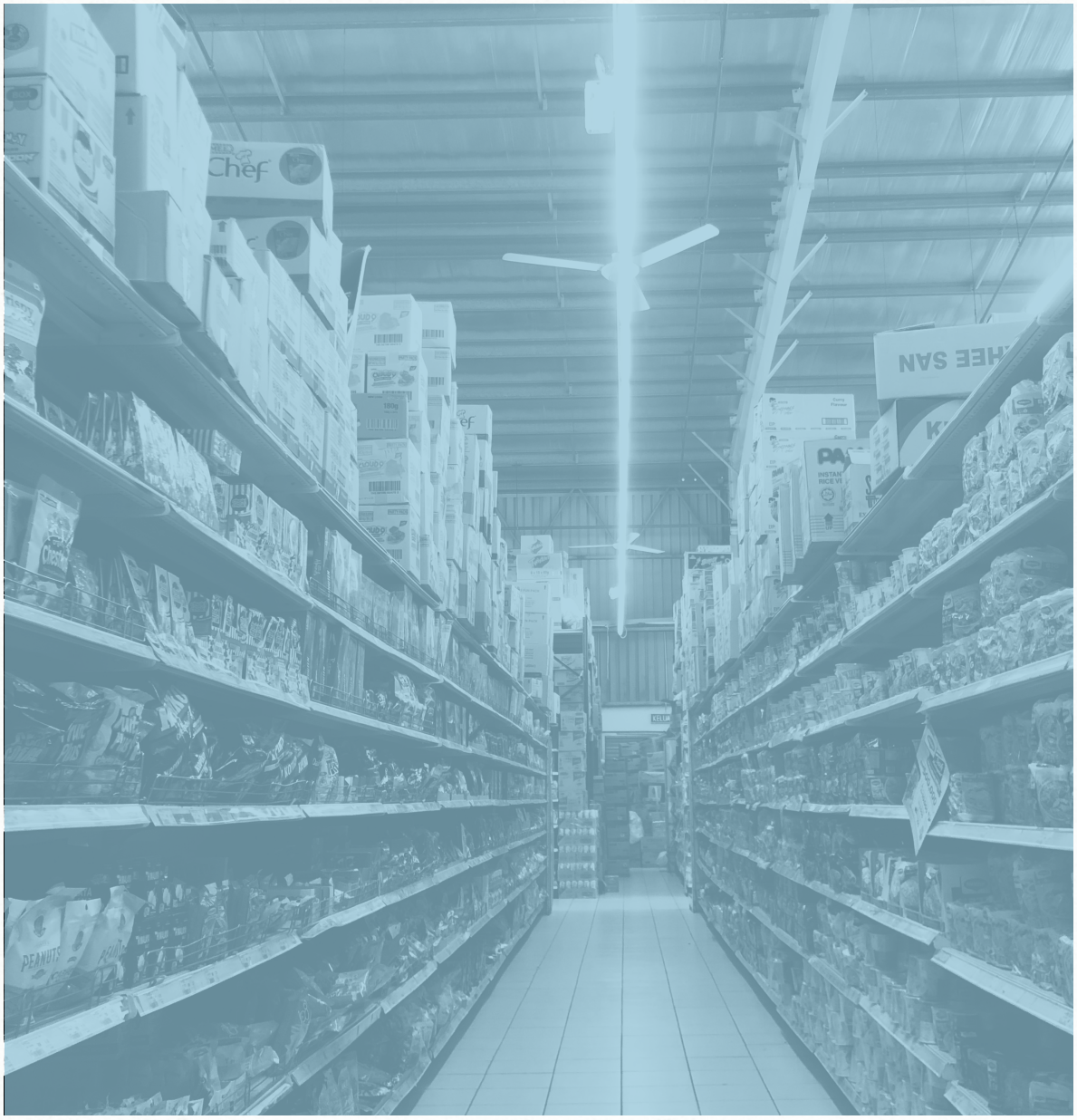
The research team adopted Roach's triangulation method and extrapolated Russia's import and export statistics using data from Russia's trade partners, whose by-country import and export statistics were publicly available. The team found data on the Chinese government website that revealed that Russian exports to China were falling, outside of the energy sector. "If Russia is saying, 'We are exporting more to China,' but China's data isn't showing that, something has got to give," Tian said. Although Europe has significantly reduced trade with Russia, China has not filled in the gap. The world has abandoned Russia economically.

Sanctions and corporate withdrawals especially impacted Russia's domestic production and consumption. The research team brainstormed alternate measures for quantifying this economic impact. They began searching the internet and found high-frequency data from e-commerce stores, revealing a 20% drop in online purchases. Sonnenfeld's team also aggregated international automobile data from industry and trade group databases. Not only had sales of Russian cars (such as LADA and Skoda) dropped, but production had also decreased by a whopping 80%. According to Sokolowski, this drop in production was a direct consequence of the US embargo on computer chips, which control the dashboard, air conditioning, entertainment system, and vehicle safety features in cars. "Not all sanctions work immediately," Sokolowski said. "But in key areas — like imports of key technologies like chips — Russia is really battered."

The invasion of Ukraine has also taken a toll on Russia's human capital. Russian men with sufficient resources crowded into airports and border crossings to escape Russia and the draft, signifying a potential — but difficult to quantify — talent flight. Wary of the migration data released by Russian news agency RIA Novosti, the research team sought to collect their own data to assess the magnitude of the talent flight and destinations of fleeing Russians. Cellphone tracking data purchased and published by the University of Net Technology and Communications revealed that a mass of cell phones had left Russia and not returned. At least 500,000 Russians had fled to surrounding countries such as Armenia, Georgia, Kazakhstan, and Turkey, gutting the Russian economy of 20% of its ultra-high-net-worth individuals (with net worths of over $30 million) and hundreds of thousands of high-skilled workers.

The research team also used on-the-ground contacts in Central Asia to assess the talent flight. For example, Sonnenfeld spoke with the Uzbek Ambassador, who told him that business at the Tashkent IT Park in Uzbekistan grew by 400% since the invasion of Ukraine. "It's not due to some Central Asian economic miracle. It's all Russian talent flight. And we know that because of Professor Sonnenfeld and his network of insiders," Wyrebkowski said. On top of sanctions and Western business withdrawals, the talent flight has deepened Russia's economic devastation.

**IN LESS THAN FOUR MONTHS,** Sonnenfeld, Tian, and the research team produced a 118-page paper titled "Business Retreats and Sanctions are Crippling the Russian Economy." Sonnenfeld's second strategic weapon and a lasso of truth, the paper would dispel Putin's falsehoods, reveal




Russia's economic weakness, and reinvigorate global support for the sanctions regime and corporate exodus.

The paper's release made a splash. Sonnenfeld, Tian, and the other co-authors had a call with the IMF, whose optimistic forecast of the Russian economy had been heavily influenced by Rosstat and gave false legitimacy to Putin's economic resiliency narrative. Following the call, the IMF acknowledged the weakness of their original forecast and the flaws in the Rosstat data they had been citing.

Soon after, Secretary of State Blinken shared their research in a press release. "It generated a tremendous amount of attention. Thousands of people were tweeting it out, including prime ministers, heads of state, CEOs," Tian explained. Sonnenfeld's thesis quickly became the dominant view among journalists and the academic community.

Sonnenfeld and his research team have since advised policymakers at the State Department, the Treasury Department, and the White House's Council of Economic Advisors, as well as the UK Parliament. Ben Harris, Assistant Secretary for Economic Policy at the Treasury Department, explained that Sonnenfeld's paper helped "crystallize" his view of the Russian economy. Significantly, he added that the published paper was something that Treasury Department officials could "talk about publicly" and "point to as a reliable source." Subsequently, Bloomberg gained access to internal Kremlin documents, confirming the dire economic situation in Russia.

Within eight months, Sonnenfeld and his team's paper became the seventh most-cited on SSRN — the Social Science Research Network — out of over 1.2 million research papers, displacing the work of a Nobel Prize-winning economist. Following the paper's widespread impact, Putin ranked Sonnenfeld #6 on his "enemy" list, higher than Mitch McConnell. Sonnenfeld is proud of this dubious distinction.

Thousands of miles from the frontline, Sonnenfeld and his team's efforts have helped to erode Russia's economic strength. As Sonnenfeld had originally hoped, their blows to Putin's economy are ultimately helping the people of Ukraine and global democracy. "It is this young Yale team that said, 'No, you are all wrong, the emperor is naked,'" Sonnenfeld said.

Sonnenfeld and his team are far from finished. Still, the war continues to rage on with devastating effects. "We are trying to constantly stay ahead of Putin's effort to divide and conquer," Sonnenfeld said. "Putin has had a waiting game where he thought that there wouldn't be unified support around the world for Ukraine economically and diplomatically. And there has been. That has been one of his biggest miscalculations, other than his miscalculation about his own military might." Since publishing the paper on the true state of the Russian economy, Sonnenfeld has continued expanding his portfolio of strategic weaponry. This fall, he worked with the Treasury Department to design an oil price cap that balanced their competing objectives to reduce Putin's profits from oil sales without creating supply shocks from lost production.

Sonnenfeld, Tian, and the research team — which now totals fifty-five people — are working on a "version two" of the paper to incorporate events from the past six months. The update will provide a comprehensive analysis of Russian supply chains, identify gaps in sanctions, and expand on the notion of Russia's asymmetric interdependence on the West. "We are not only continuing, we are doubling down," Tian said. "We are in one of the early innings and have many ideas."

# A More Perfect Primary

## Reforming Elections in Alaska

BY **THEO SOOTODEHNIA**

**"I CONSTANTLY THINK:** God bless Scott Kendall," said electoral reform activist and political donor Katherine Gehl. "He took an idea and he made it real — he won."

Kendall — a lawyer, consultant, and political staffer from Alaska whose client list reads like a who's who of pragmatic Alaska Republicans — played a critical role in the passage of Ballot Measure 2 in November 2020. Measure 2, which became law by just under 4,000 votes, transformed the way Alaska runs its elections. In addition to strengthening campaign finance laws, the referendum replaced the two-party primary system with a top-four blanket primary and the first-past-the-post system — where the candidate receiving a plurality of votes emerged victorious — with ranked choice voting. Under the new system, candidates of all parties run on the same ballot in an open primary. The top four names advance to the general election, where voters use ranked-choice voting to winnow the field down to a winner.

Measure 2 fundamentally changed the way Alaskan politicians interact with voters. Before Measure 2 was enacted, Republican State Senate Majority Leader Cathy Giessel explained, there was little incentive to speak to voters outside of one's party during primary campaigns. "I would target voters who were Republicans who voted in primaries… I skipped a lot of doors," she said.

After Measure 2 passed, Giessel's strategy changed. "I did not waste any money buying a database. I didn't care who was behind the door. I wanted to talk to every person." Getting rid of the closed primary system drove Giessel to seek out constituents who would not have voted in a Republican primary. "As a result," she noted, "I got some really great interactions with folks — some hard questions from people, but also the opportunity to talk to people I never would have before."

With great pride, Giessel recounted a campaign-trail anecdote she believed demonstrated the benefits of Measure 2. Giessel got a confused response from a liberal constituent after knocking on his door, she explained. "He looked at me and he said, 'Oh, you've knocked at the wrong door. I'm a Democrat. I'm a super-voter Democrat.'"

Under the old primary system, the man likely would have been correct. But Measure 2 had changed that. "I said, 'Oh, sir, no, I actually want to talk to you.' He was rather taken aback," Giessel explained. The man's initial confusion did not prevent him and Giessel from a meaningful interaction, though. "We had a great conversation — identified areas where he disagreed with policies that I had, but we found so many more areas that we both agreed on."

"Most people running for office would agree with me that going door to door is one of the hardest things to do in a campaign," Giessel continued. "You don't know these people. You're out in rain and wind and sun and there are lots of dogs. But last year, I looked forward to it. It was so delightful to talk to this variety of people and hear so many great ideas."

> "Everything is focused on getting through that closed primary, not on actually legislating and solving problems."

In Giessel's view, it often takes a long time to drill into legislators' minds that bipartisanship "is not a deadly practice." Many state legislators come up through the world of partisan activism. Giessel herself did. They spend years as partisan crusaders, serving as party chairman in their towns, running or volunteering for local campaigns, joining partisan social clubs, and more. Then they arrive in the legislature, and are thrust into a working relationship with the other side. "I went to the legislature with very partisan ideas," Giessel noted. She had served as a state party vice chair and a district chair and had been an active member of the Anchorage Republican Women's Club. After being elected to the state legislature, though, it quickly became clear to her that a one-sided approach to policy and politics would not cut it. "Working with everyone is how you actually get something done in a legislative body," Giessel explained.

Before the passage of Measure 2, Alaska's electoral system often punished people like Senator Giessel for coming to the conclusion she did. Her complaint is not a new one. Many academics, public intellectuals, pundits, and donors have long argued that the American electoral system is fundamentally broken, that it disincentives compromise and bipartisanship. Yet for generations, efforts at comprehensive electoral reform have failed. Indeed, to call them "failed" almost gives them too much credit: few efforts at electoral reform as broad and inventive as Measure 2 have made it off the drawing board, let alone onto the ballot.

In large part, Alaska succeeded where others failed because of its distinct history and political environment. Advocates for Measure 2 also benefited from a healthy dose of luck. Understanding the unique combination of factors that led to Measure 2's passage requires knowledge of

the heterodox political coalitions created by Alaska's unique geography, history, and demography.

**ONE ISSUE AT THE HEART** of both Alaska's cross-partisan political coalitions and the partisan wrangling that undermines them is the unceasing legislative battle over the Alaska Permanent Fund. The Fund places money from oil royalties into an investment vehicle that pays out an annual dividend to all Alaskans.

When Alaska achieved statehood in 1959, its economy was heavily reliant on fishing and mineral extraction. The discovery of oil on the state's North Slope in the late 1960s and the subsequent construction of the Trans-Alaska Pipeline transformed the state. Leases for access to the North Slope sold for 900 million dollars, at the time the most expensive lease sale in American history. Many Alaskan leaders, including then-Governor Jay Hammond, worried oil revenue would either not stay in Alaska or would become concentrated in the hands of relatively few of the state's citizens, leaving most Alaskans with none of the benefits of their states' natural largesse. There was also widespread acknowledgement that oil was not an infinite resource: at some point, wells would be exhausted, and Alaskans would be hung out to dry.

Thus emerged the idea for a fund to preserve and distribute Alaska's oil wealth for public benefit. In 1976, Governor Hammond and his political allies supported a ballot referendum that would amend the state constitution to create the Alaska Permanent Fund. The referendum passed with overwhelming support. Since then, 25% of state revenue from fossil fuel production each year has been deposited in a sovereign wealth fund, which finances some government services and pays out an annual dividend (the amount of which varies annually, but often falls around $1000) to every Alaskan, making it one of the only large-scale examples of universal basic income in the world.

With roughly the same number of people as the New Haven metropolitan area, Alaskans have a relationship with their politicians more akin to the one residents of a small city might have with their alderman.

How to use the Permanent Fund is a contentious, recurring issue in Alaska. It is larger than the state's annual GDP, and its annual dividend makes a tangible difference in many Alaskans' quality of life. The per capita income in Alaska in 2020 was $39,000. The dividend, distributed to every resident of Alaska regardless of age, was over $3,200 in 2022, or 8.2% of the state's per capita income. The Fund's existence has created a perennial battle between those who argue its revenue should be used for larger, direct payments to Alaskans and those who argue it should be treated more cautiously or used more to fund public works and other government services.

Alaska is by far the largest state by land mass; it is well over twice the size of Texas. Yet Alaska only has about 2.5% of Texas' population. Much of rural Alaska is not accessible by road, and many villages lose sea access in the winter. The best way to provide these rural areas with services, food, medicine, and access to the outside world is by air, which is rarely a profitable endeavor when villages sometimes have fewer than 100 residents. The difficulties of traveling, communicating, and integrating government services across such a huge and sparsely populated land mass requires more comprehensive planning and infrastructure than in many other states.

Accordingly, the size of the Permanent Fund's annual dividend and the quality of public services are both acutely important issues to Alaskans. The politics of the Alaska Permanent Fund provide a good introduction to Alaska's tradition of cross-partisan coalitions. Related policy debates do not neatly fit into party lines. Supporters and opponents of big dividends exist in both parties. "It has broken across party lines, there's no single party that sits solely on one side of that issue or the other," Giessel explained. "It has promoted, I think, more bipartisanship."

In addition to the cross-partisan nature of debates surrounding the Permanent Fund, Alaska's small population encourages less partisan politics. With roughly the same number of people as the New Haven metropolitan area, Alaskans have a relationship with their politicians more akin to the one residents of a small

city might have with their alderman. Politics are intimate; politicians are familiar.

**DESPITE THE FAVORABLE** environment for cross-partisan governance, Alaska still struggles with partisan gridlock that impedes policymaking, especially when it comes to the use of Permanent Fund revenue.

Kendall experienced these partisan stumbling blocks first hand when he served as Chief of Staff to Governor Bill Walker, who was elected as a moderate independent with bipartisan support after withdrawing from the Republican primary for governor in 2014. Walker sought to shore up state finances and advocated for fiscal discipline with respect to the Permanent Fund to ensure it was sustainable for generations of Alaskans to come. It was Kendall who inherited the thankless task of negotiating with the state legislature in order to pass Walker's agenda, including his proposed Permanent Fund reforms.

It was those two years of legislative wrangling that convinced Kendall of the need for electoral reform. "I had just spent two years being fed up with legislative dysfunction, which I attributed largely to the way [politicians are] elected," Kendall said.

Kendall argued that the political gridlock he faced stemmed, in part, from politicians' fear of being challenged in a primary if they appeared overly willing to work with their party's opponents. "There are definitely people on both sides who want members of the other party to fail, even if they agree with their legislation," he said.

After he left the Governor's office, Kendall searched for a resolution to these frustrations. He talked to friends in the state legislature and tried to devise a system that reformed not only the electoral system, but also the political pressures that pushed legislators in what he saw as unproductive directions.

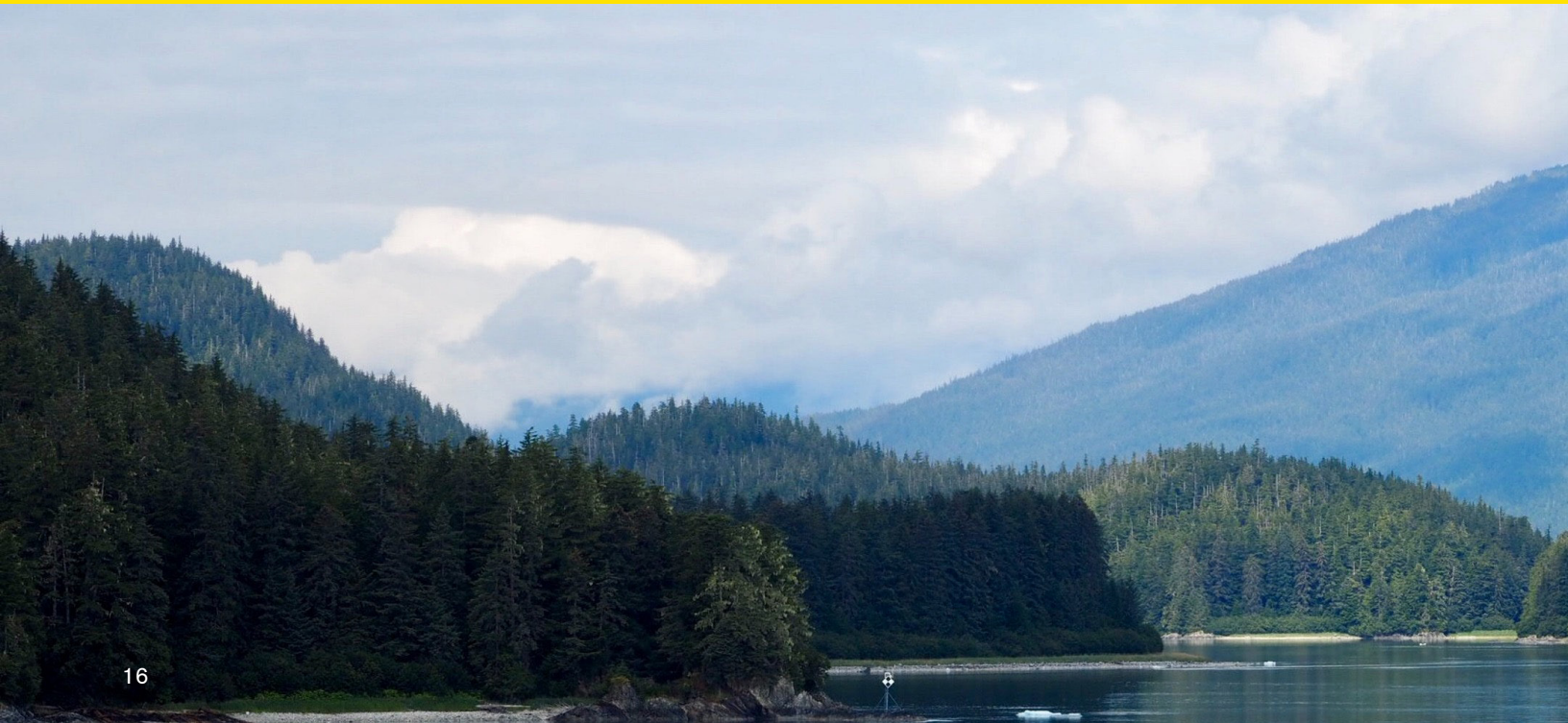
"In Alaska, 60% of people don't affiliate with either party," Kendall explained. Senator Giessel concurred with Kendall's analysis, noting that in Alaska, "the political parties actually have pretty low affiliations." As of 2020, less than 40% of Alaskan voters were registered Democrats or Republicans. Yet the minority of Alaskans who are fervent partisans had an outsize influence over the state's politics under the closed primary system. In a broadly conservative-leaning state, winning the Republican primary nearly guaranteed a candidate's success in the general election in many legislative districts. In effect, a small, non-representative cohort of Alaskans, those who were registered members of one of the major political parties and turned out to vote in primaries, played a huge role in shaping the ideological makeup of the state legislature.

At first, Kendall thought getting rid of the partisan primary would effectively curtail the influence of voters at the political extremes. Yet as he dove deeper into the literature on electoral reform and studied the effects of top-two primary systems implemented in Washington and California, he came to the conclusion that top-two systems would not fundamentally change the incentives pushing politicians to pander to the edges of the political spectrum.

"It didn't seem from the California Washington experience that it was really the vast improvement I was hoping for," Kendall explained. A study of the top-two primary system in Washington State commissioned by the electoral reform advocacy group FairVote concluded that top-two voting systems largely fail to increase the political fortunes of moderate candidates. After delving into the data, FairVote found that top-two primaries seem to have little effect on partisanship or electoral competitiveness.

It seemed crystal clear to Kendall that the current electoral system was not serving voters' interests. "Everything is focused on getting through that closed primary, not on actually legislating and solving problems," he said.

It was not just Kendall who believed the system had failed. Giessel, the Republican State Senate Majority Leader, described the poor state of government services in Alaska in great detail. "When school started in August, as usual, many schools did not have enough teachers for their classrooms," she said. In Anchorage, Giessel continued, "there were not enough bus drivers, so . . . parents would have to transport their children themselves." Last fall, Anchorage instituted a system of rotating "cohorts" to cope with a severe driver shortage. With only enough drivers for 35% of the city's students, the school district opted to provide students with transporta-



tion for only three out of every nine weeks.

The poor state of government services did not stop with education; Giessel noted that the state was understaffed and unprepared for early snow storms last fall as well—the state did not have enough snow-plows or road-graters to keep cities open. These problems reminded many Alaskans how important government services are to their quality of life, Giessel contended. "People are realizing state services serve everyone," she claimed.

As Kendall searched for a solution—talking to friends, legislators, and others in Alaska—he slowly came upon a system he thought might work. It was not until he dove into the academic literature on electoral reform, though, that all the pieces clicked into place.

"I read a report in the Harvard Business School by Katherine Gehl and Michael Porter," said Kendall. Gehl is a political donor, former corporate executive, and philanthropist from Wisconsin and Porter is a Harvard Business School professor who specializes in the study of competition and strategy. In their 2017 paper, the pair argue that politics is an industry like any other, whose participants often look after their own interests before the public good. Gehl and Porter emphasize they do not blame parties and politicians themselves for this, arguing instead that our political system incentivises and encourages this kind of behavior. In Gehl and Porter's view, the core of this failure is a lack of true competition.

Gehl and Porter's critique of the American political system rang true for Kendall; it sounded a lot like the critique he had been building in Alaska for months. To his delight, Kendall found that their paper had proposed many of the same reforms he envisioned, including replacing partisan primaries with a top-four blanket primary and implementing ranked-choice voting in the general election. "It sort of validated, okay, I'm on the right track, this isn't crazy," Kendall said. "Like, there are other people who have thought these thoughts, it's just never been operationalized."

With his goal in mind, Kendall crafted a ballot measure that paired high-minded political reform with pragmatism. During the drafting process, Kendall explained, "We polled what's viable, what is too much for people to think about. Because if we're going to fix [things], let's try to fix as many things as we can."

**KENDALL KNEW** what it would take for the ballot measure to pass: cross-party appeal, discipline, and money. He wanted to have a co-chair from each major party as well as a prominent political independent. He got Democrat Bruce Botelho, a former Alaska Attorney General and long-time mayor of the state capitol, Juneau; former State Representative Jason Grenn, an independent politician he had worked with while Governor Walker's chief of staff; and Bonnie Jack, a well-connected Republican activist. All three agreed to serve as campaign co-chairs.

Grenn and Botelho described the campaign as a concerted effort to build coalitions across traditional lines, of finding others who were fed-up with legislative paralysis and partisan extremism. "We had Fishermen for Better Elections, we had Alaska Natives for Better Elections, we had Chamber of Commerce directors, all sorts of people from around the state," Grenn explained. He highlighted the Measure 2 campaign's success at engaging with different communities and constituencies across the state as key to its passage.

But winning this fight required more than cross partisan support: Kendall also needed money. "Without a strong financial base, most initiatives do not have a chance," Botelho, a veteran of many prominent Alaska ballot measure campaigns, said.

That Kendall's Ballot Measure 2 did not suffer for lack of funding is, in large part, due to Wisconsin philanthropist Katherine Gehl, whose paper on electoral reform Kendall stumbled upon in the run-up to the Measure 2 campaign.

Gehl had long been involved in the electoral reform community. A one-time Obama donor who became disillusioned with partisan politics after the 2010s' fruitless fights over the deficit, she underwent her own political odyssey, which she termed her "five stages of political grief." She came to believe that what she perceived as a lack of progress in American politics could be traced to the two-party system's stranglehold over elections. Without reforming the way politicians are elected and transforming the political incentive structure, she believed the reforms she

# “I certainly didn’t have $7 million to run a campaign.”

desired would be unattainable. In 2015, she sold her family food-processing business for hundreds of millions of dollars, and devoted herself to electoral reform.

Kendall reached out to Gehl after reading her paper, and she enthusiastically backed the campaign. The connection between Gehl, other wealthy donors, and Kendall was a key factor in Measure 2’s success. “I certainly didn’t have $7 million to run a campaign,” Kendall said.

That Measure 2 passed, even by the narrowest of margins, is a testament to the political skills of all involved. Kendall, Botelho, Jack, Grenn, and Gehl managed to achieve major change while avoiding hyper-partisanship and toxicity.

The inaugural use of this new electoral system in the 2022 midterm elections has vindicated Kendall, Gehl, and Measure 2’s supporters. State Senator Cathy Giessel, who had lost her primary to a right-wing challenger during the Trump administration, won back her seat, and the number of independents serving in the state legislature expanded significantly. At the statewide level, too, election results reflected a mix of partisan preferences: a moderate Democrat was elected to the House of Representatives statewide on the same ballot as moderate Republican Senator Lisa Murkowski and the state’s conservative governor, Mike Dunleavy.

After the 2022 elections, a bipartisan coalition of lawmakers formed a majority in the state senate. One of the coalition’s members — a Democrat — vowed to “put our partisan differences aside” in the name of responsible and effective legislation.

Bipartisan coalitions are not unprecedented in Alaska —the most recent one in the state senate lasted from 2007 to 2012, and another ruled the state house from 2019 to 2023. But some legislators who worked across the aisle, like Senator Cathy Giessel, went on to lose primaries before Measure 2 was instituted. Measure 2 was set up to encourage and protect this sort of bipartisan collaboration, and realign political incentives away from the traditionally more extreme primary electorate.

Already, the impact of Measure 2 on government productivity and public policy is becoming clear. The State Senate, which has a bipartisan coalition led by Majority Leader Giessel, is talking about investing in education, ensuring government departments have enough funding to function, and pension reform, issues that have proven thorny and difficult to tackle in the past.

But Measure 2 has not created complete cross-partisan alignment. In the state house, a new Republican-led governing coalition has formed, but it is divided on issues including the Permanent Fund dividend, education funding, and pensions. Some members are also attempting to get rid of the new electoral system. Still, the disagreements in the House are not along strict party lines. The governing coalition includes 19 Republicans, two Democrats, and two Independents and the minority includes 16 Democrats, four Independents, and one Republican.

In an era in which so many Americans feel legislators have lost the ability to talk to each other, it might be that Alaska has found a way to incentivize conversation and cooperation. Its experiment may yet prove to be the future of American democracy. Or it may serve to further distinguish an idiosyncratic state from the rest of the country. One thing is certain: Alaska’s politics will never be the same again.

# THE FALLOUT

## The Fight Over Nuclear Waste on Yucca Mountain

BY **ANDREW ALAM-NIST**

**YUCCA MOUNTAIN,** from a distance, does not seem distinct from any other mountain in the vast Nevada desert. Like thousands of others, it looms tall over the bare, arid landscape. But get closer and you will begin to see evidence of its unique history. On the side of the mountain, a circular door is carved into the rock. With a circumference four times the height of a person, this repository seal leads into the Yucca Mountain Nuclear Waste Repository, a storage facility approved by the federal government in 2002 to store spent nuclear fuel and high-level radioactive waste permanently. Littered with intersecting pipes and cables, the seal is an inescapable reminder of how the federal government irreparably changed the mountain's landscape and the community around it. More than 20 years later, the project remains stalled indefinitely, with no timeline for completion.

Ian Zabarte, the Principal Man of the Western Shoshone nation, an Indigenous nation of more than 5,000 people, has a deep, personal connection to the lands surrounding the site. Born in San Francisco in 1964, Zabarte would visit the Western Shoshone reservation in the Nevada desert every summer. He loved many things about life on the reservation: riding horses, hunting, fishing, and gathering. However, it did not take him long to discover the danger that the federal government posed to his

**“I had to watch my family die. And I feel like I’m racing the clock myself. My mother played in the fallout. My aunts and uncles played in the fallout. I have other cousins with various health issues, including cancer.”**

lifestyle.

In 1863, the federal government and the Western Shoshone nation signed the Treaty of Ruby Valley, giving the Shoshone land rights over much of Nevada. Over the last 100 years, however, Shoshone land rights over Nevada have largely been ignored. Between 1951 and 1992, the United States conducted over 1,000 nuclear weapons tests at the Nevada Test Site, now the Nevada National Security Site, only 24 miles from the base of Yucca Mountain.

These tests—much like the construction of the Yucca Mountain Waste Repository—were conducted against the will of the Shoshone nation. Though the consequences of nuclear testing have faded from the consciousness of many Americans since the last detonation in 1992, they remain a harsh reality for the Shoshone people. The Shoshone have to grapple not only with increased risk of cancers, tumors, and birth defects, but also with the basic idea that the U.S. government does not recognize their ownership of their land.

**THE TREATY OF RUBY VALLEY,** signed in 1863 to protect America’s gold reserves in the West during the Civil War, confirmed the Western Shoshone people’s ownership of most of Nevada in exchange for allowing the United States the right to traverse the area, maintain established infrastructure, and engage in specific economic activities. The treaty at no point ceded Shoshone land to the United States.

However, in the early 1900s, the United States began to assign lands designated to the Shoshone in the treaty as “public lands.” Throughout the 20th and 21st centuries, the Western Shoshone people have engaged in constant legal battles and protests to determine who owns the land.

In 1962, the Indian Claims Commission, an arbitration body established by Congress to hear claims from Native American tribes, awarded the Western Shoshone $26 million in compensation for their land. The Court of Claims deposited the money into a Treasury account for the Western Shoshone nation. However, the Western Shoshone refused to accept the funds, saying they were not willing to be bribed out of their lands.

In 1985, the Supreme Court ruled in *United States v. Dann* that the appropriation of funds by Congress constituted “payment” despite the non-participation of the Western Shoshone. The Court ruled under Section 70 of the Indian Claims Commission that the Western Shoshone’s “aboriginal title had been extinguished,” permanently barring their future claims to the land claimed by the federal government.

Since the federal government’s claim on the land was apparently legitimized by the ruling, the fight for Western Shoshone land rights has only intensified.

**IN THE 21ST CENTURY**, Yucca Mountain has been central in the Western Shoshone’s battle for the rights to their land. After 15 years of studying Yucca Mountain’s suitability, the federal government approved the Nuclear Waste Repository in 2002. Instead of relying on dry casks to store nuclear waste — a semi-permanent solution used by all current nuclear reactors in the United States — Yucca Mountain was designed to store nuclear waste for tens of thousands of years. By the mid 2000s, more than nine 9 billion dollars had been spent on research and the initial construction of the facility.

As the project progressed, roadblocks quickly appeared. In 2004, the District of Columbia Circuit Court ruled that the project had not followed the National Academy of Science’s safety standards and, as a result, had to reevaluate its construction practices. For many, the project overlooked these dangers and the implications for the nearby Western Shoshone.

Mike Thorne, a researcher in radiology at nuclear safety consulting firm Quintessa, was brought in by the state of Nevada as a researcher to determine the extent of the risk to the surrounding community posed by Yucca Mountain. His findings were not encouraging.

“We found 300 plus issues, some more serious than others, that we felt needed to be addressed in the safety case,” Thorne told *The Politic*. There was a significant risk of water leaking into the side of the site which then could diffuse throughout the repository and corrode the rock in it, having effects that are almost impossible to gauge. They could not ensure that radioactive material would be contained in the site and would not affect the broader community around it.

Due in large part to fervent opposition from the state of Nevada and U.S. Sen-

ator from Nevada Harry Reid, who worried about the harmful effects of radioactive waste on their state, the project began to fizzle out. In 2007, Congress cut then-President George W. Bush's budget for the project to 370 million dollars, a sum much smaller than the amount requested. During a hearing in Congress in 2009, Energy Secretary Steven Chu said that Yucca Mountain was "off the table" as a method of nuclear waste storage.

In 2011, the Obama administration suspended the project indefinitely. While there have been movements both to reopen the project—a position taken by the Trump administration in 2018—or to close it indefinitely, as advocated in a recent letter from Nevada legislators to Congress, right now the project remains in limbo: halted but not permanently canceled.

In Zabarte's view, Shoshone ownership over Yucca Mountain played a significant role in the decision to suspend its construction.

"What happened in Yucca Mountain was we stood up and said, 'Hey, this is Shoshone property,' property being our bundle of rights that can't be extinguished," Zabarte argued. Looking forward, he believes it essential to protect their rights in the future whenever possible, enshrining the privileges given to the Shoshone by the Treaty of Ruby Valley.

**YET THE WESTERN SHOSHONE'S RISK** of radioactive exposure extends beyond Yucca Mountain. From 1951 to 1963, the federal government conducted atmospheric nuclear weapons tests across the Nevada Test site. Atmospheric nuclear weapons tests—unlike underwater or underground tests—are conducted in the open air. Radioactive fallout from this type of test spreads around the region near to the test site, which increases the risk of various illnesses and diseases.

Stephen Herzogg, a researcher in nuclear arms control at the Swiss Federal Institute of Technology in Zürich, suggested that, when talking about the consequences of nuclear weapons testing, "we're talking about high rates of cancers, which are scientifically proven and statistically significant. We're talking about tumors, we're talking about birth defects."

A 2006 study suggests that about 49,000 cases of thyroid cancer, 47,000 of leukemia, and several other diseases have likely arisen as a result of fallout from nuclear weapons testing in the U.S.

However, research has only recently focused on the specific extent to which the Western Shoshone faced such consequences. For the most part, when fallout research has been conducted, it has not adequately accounted for the Western Shoshone's way of life, whose hunting and foraging practices make them far more vulnerable to the effects of radioactive fallout.

"Our staple food is the pine nut and we would get [them from] the dead trees, not the live trees. And so when people came across these areas where there was dead wood, they thought, 'Oh, this is great' but that dead wood was potentially the result of radiation killing the delicate flora and fauna," Ian Zabarte pointed out.

Abel Russ is a researcher in environmental risk management who traveled to Nevada on a fact-finding mission on behalf of Clark University from 1999 to 2005 to study the level of radioactive materials among the Western Shoshone people. His research considered the way the Shoshone live, looking particularly at their hunting practices. Tracing the effects of environmental radiation, Russ found that nuclear fallout led to a high incidence of radioactive iodine in the body among the Western Shoshone. The Center for Disease Control has called this isotope "the most important harmful radioactive material in fallout." This iodine is often found inside different elements of the ecosystem, including the animals that the Shoshone hunt.

"We did some more granular analysis of the deposition of radioactive iodine, including nuclear weapons testing and studying how it gets into the human body, whether it's by eating a rabbit or being nursed by a mother who's eaten a rabbit," Russ said.

As a result of radioactive iodine, Russ found a significantly elevated risk of cancer among Western Shoshone individuals. "We found cancer risks were on the order of up to 10% extra for adults and something like 20 to 30% increase in risk for people who are exposed as a newborn," Russ said.

Russ's research only concerns a single pathway of radiation—radioactive iodine. Other types of cancer, such as leukemia, are likely associated with different compounds in the fallout cloud and have not been adequately traced. It is thus likely that among the Shoshone nation, the carcinogenic impact of nuclear fallout is significantly greater than the results of Russ's research. Even now, the extent to which past nuclear weapons have affected vulnerable communities remains understudied.

**THE EFFECTS** of nuclear weapons testing extend beyond individual bodies. Historically, nuclear weapons testing has permanently and drastically changed physical environments as well.

"There are parts of existing nuclear test sites where atmospheric nuclear tests were carried out which are uninhabitable today. This is a continuing legacy that happens with atmospheric testing. And it doesn't just simply go away," Stephen Herzogg said.

This history of harming marginalized communities is not confined to Nevada. During the Cold War, the Soviet Union did its testing at the Semipalatinsk test site in Kazakhstan, a site far from most Russian people and largely occupied by Kazakhs. France conducted its nuclear tests during the 1960s in Algeria and French Polynesia. In the 1960s and 1970s, China conducted many of its nuclear tests near Uyghur regions.

"There's a legacy of hundreds of atmospheric nuclear tests, which is the equivalent to using a nuclear weapon, and their downwind effects on people. And generally speaking, I think that many indigenous peoples in the world, Kazakhs or others, are also victims of the use of nuclear weapons," Herzogg said. The nuclear weapons tests in Nevada do not represent a uniquely American phenomenon, but a legacy of nuclear powers disregarding marginalized groups.

Zabarte believes the federal government's actions affecting the Shoshone nation have been characterized by this dismissal. In the case of nuclear weapons testing, this has proved lethal.

"I had to watch my family die. And I feel like I'm racing the clock myself. My mother played in the fallout. My aunts and uncles played in the fallout. I have other cousins with various health issues, including cancer," Zabarte said.

The federal government continues to exploit many lands designated as belonging to the Western Shoshone under the Treaty of Ruby Valley. While nuclear weapons testing and nuclear waste storage have left the site, their consequences have not. For Zabarte, the biggest questions facing the federal government are relatively simple ones—if it will respect the Treaty of Ruby Valley and if it will address the historic debt to the Shoshone that nuclear weapons testing has created.

# Something, Somewhere

## The Struggle to Create Space for Asian Americans in the Performing Arts

BY **SAMANTHA MOON**

**UPON ARRIVING AT YALE** in 2020, Sam Ahn, who has always been interested in theater, couldn't help but notice the absence of a prominent Asian American theater community at Yale.

Now a junior, Ahn spends his Friday evenings in a brightly lit room on the second floor of the Asian American Cultural Center for board meetings of the Asian American Collective of Theatermakers (AACT). Fellow board members Olivia O'Conner and Maya Li sit across from Ahn on gray and blue couches and discuss the events they are planning and the new club members they've welcomed.

Ahn created the AACT in September 2022 to give Asian Americans interested in theater what he craved as a first-year—a "place people could point to and say, 'Oh, look, a thriving Asian American theater community.'"

**ALTHOUGH AHN'S PRIMARY PASSION** is theater, not film, the two worlds are intimately connected. Seeing Asian Americans flourishing in the broader performing arts world, whether it be on stage or screen, is crucial to achieve the type of community that Ahn seeks to build at Yale.

With the recent success of Asian American films such as *The Farewell* (2019), *Shang-Chi and the Legend of the Ten Rings* (2021), *Crazy Rich Asians* (2018), and *Everything Everywhere All at Once* (2022), conversation has erupted about Asian American representation and recognition in Hollywood.

Now, Daniel Kwan and Daniel Scheinert's *Everything Everywhere All at Once*—a film with Asian American leads, a majority Asian American cast, and an Asian American co-writer and co-director—is leading in Oscar nominations for the 95th Academy Awards. The film already won several Golden Globes, with Michelle Yeoh receiving Best Supporting Actress for her role as Evelyn Quan Wang. She is the second Asian American actress to ever win a Golden Globe in that category.

The recognition *Everything Everywhere All at Once* (EEAAO) received at the Golden Globe and Academy level thrust the question of Asian Americans' place in Hollywood into the forefront of public consciousness. What impact does the incredible success of one film have on an entire industry? Is the system that has kept Asian Americans from gaining recognition in Hollywood being overturned? Can young performers like Ahn finally look to Hollywood and see themselves reflected in a vibrant Asian American community?

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**THE IDEA OF BELONGING** is central to the conversation about the role of Asian Americans in Hollywood. When Asian Americans first entered the industry in the early 19th century, they were cast in flatly stereotyped, caricatured, and villainized roles.

Anna May Wong, who is considered the first Chinese-American movie star in Hollywood, rose to such prominence that her face now graces the American quarter. Yet, during her time in Hollywood, Wong was consistently typecast in roles that perpetuated harmful, hypersexual stereotypes about Asian American women—a Mongol slave in *The Thief of Bagdad* (1924), a prostitute in *Shanghai Express* (1932), and a nightclub dancer in *Piccadilly* (1929). Only recently have Asian Americans played the role of the hero or the dimensional lead.

Ryan Zhou '22.5, a Film and Media Studies Major, contends that early Hollywood set up the industry for the underrepresentation we see today. "Back when Asian Americans were first coming onto the scene in Hollywood, a lot of the time they were portrayed as this idea of the orient, which was this alienated, foreign concept that was not fully American…Given that that was the introduction of Asian American people into Hollywood, I think it really set the stage for the under-appreciation to come."

Industry award statistics demonstrate how evident under-appreciation is. Since the first Oscars ceremony in 1929, the Academy has given 3,140 awards. Prior to this Oscar season, Asian Americans had been nominated for 336 and won 75—just 12 of those wins being for acting roles. This year, *Everything Everywhere All at Once* (EEAAO) was up for 11 Oscars, making it one of the highest-nominated Asian American films in history.

**IT IS IMPOSSIBLE** to discuss EEAAO, however, without acknowledging the films that preceded it and paved the way for its success. In recent years, the most prominent trailblazer was *Crazy Rich Asians,* the first all-Asian film out of a major Hollywood studio since *Joy Luck Club* in 1993. Soojin Park '25 believes a movie like *Crazy Rich Asians* had to walk so a movie like EEAAO could run. "For a very long time, studios didn't believe there would really be an audience for 'Asian' stories. The success of a larger-than-life, mainstream movie like *Crazy Rich Asians* was necessary to prove that there was a market for stories about characters that weren't necessarily the traditional 'face' of Hollywood," Park said in an email to *The Politic*. "The movie was a breakthrough in a collective, public recognition of Asian American narratives and made the production of a more niche, independent film like EEAAO possible."

One critique of *Crazy Rich Asians*, however, is that its story is not representative of the Asian American experience, as it focuses on exorbitant wealth and a rarefied Asian lifestyle. The movie is primarily set in Singapore and centers on a wealthy family of Han Chinese descent. It follows Rachel Chu, an Asian American economics professor, as she navigates life with her fiancé's family, who live like royalty in Singapore. In contrast to the wealth displayed in the film, Asian Americans are the most economically divided racial group in the United States. While the film was lauded for its entertainment value, acting, and popular appeal, it is fundamentally unrelatable for most Asian Americans. "The movie meant a lot to see Asian people on screen, but in terms of identity and wanting to relate to the identities portrayed on screen, it ultimately didn't really connect with a lot of actual Asian American people," Natalie Semmel '25, a Film and Media Studies major said.

**ONE OF THE FACTORS** behind EEAAO's success is the way it *does* manage to connect with its audience. Its inclusion of themes like immigration, economic struggle, and familial conflict struck a deep chord with Asian American audiences. When Diza Hendrawan '25 walked out of the theater after seeing the film for the first time, they were crying. "I can't believe that that was a movie…I feel like I was literally tossed through a washing machine," they said.

Another of EEAAO's draws is the realistic portrait it paints of the Asian immigrant experience in America. Story aside, simply hearing Asian accents presented in such a realistic and inoffensive way was particularly meaningful to Ahn, who remarked that the accents in EEAAO reminded him of his parents' accents. Ariane De Gennaro '25 echoed, "I saw my mom in it… and her mom too. There was fighting, but there was so much love…It's really meaningful to see that portrayed in such a big movie."

Moreover, despite the film's portrayal of a Chinese American family, it develops themes that many audience demographics, not solely East Asians, may relate to; the film is fundamentally a movie about immigrants, family, generational trauma, and relationships. "I was just happy to see a story like that being told. Being the child of two [Polish and Indian] immigrants in this country…well…there aren't a lot of stories like that…EEAAO's story is told through the experience of a Chinese immigrant and her family, but it is also universal," Aiden Thomas '25 told *The Politic*. Hendrawan agreed, describing the film as having bottled a complex but deeply relatable feeling—the emotional push and pull of two people yearning for something better when neither of them knows where to start. It is that feeling that, according to Hendrawan, lends this story its universal reach.

**THE SUCCESS** of EEAAO is a testament to the value of amplifying Asian American

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stories—but, if a film like EEAAO can be so well-received, why don't we see more films like it being produced? This partially has to do with profit concerns, as Asian American stories have not historically been able to generate substantial revenue.

"Films are not made only as art. They're made to make money, too. And films are incredibly expensive to produce. It's kind of impossible to want to make a film and be making it about a subject that's not making money, and I think there has been a notion that Asian American movies will not make money," Semmel said. Ahn expressed a similar sentiment, saying that a film like EEAAO would be seen as a definite risk by producers and executives.

Joy Liu '25, an Ethnicity, Race & Migration major, described the battle of getting an Asian American story produced as a "self-fulfilling prophecy." According to Liu, a story about Asian Americans may get greenlit, but, seen as a financial risk, it often won't receive the right amount of budget or promotion that it should from its production company. As a result, it doesn't do well at the box office, and Hollywood executives walk away with the assumption that Asian American stories won't sell. Between *Joy Luck Club* in 1993 and *Crazy Rich Asians* in 2018, there was not an Asian American movie that was a box office hit. Even *The Farewell* (2019), for which Awkwafina won an Oscar for Best Supporting Actress—the first Oscar in the category to be awarded to an Asian American—grossed only 21.3 million worldwide. *A Star is Born*, which received an Oscar the same year, grossed 436 million worldwide.

If Asian American stories are not perceived as money-makers, what, then, *is* a money-maker? The answer is as much a *who* as it is a *what*. There is a certain pool of stars that Hollywood pulls from when casting a movie for their reliable audience draw. For example, *Dune* (2021) features a slate of critically acclaimed stars, including Timothée Chalamet and Zendaya, as the film had an imperative to at least recoup its $165 million budget. A star-studded, name brand cast was a way to hedge its bets. Given the historic whiteness of Hollywood, there are comparatively few Asian American stars.

Getting an Asian American film greenlit can be very difficult without a popular name attached that can guarantee revenue. Thus, when the industry wants to showcase an Asian hero, it plucks one from the same, very small basket of Asian American actors. "In the past few years of movies, I've seen certain Asian people being selected as *the* Asian people. A movie needs an Asian person—great, Michelle Yeoh! Or, I feel like Henry Golding [who starred in *Crazy Rich Asians*, *Monsoon*, and *The Gentlemen*, among others] is just *the* Asian male star," Ahn said. "It seems that casting directors think these Asian stars can represent all of Asian Americans. I would like to see newer faces."

**PART OF THIS CYCLE** of underrepresentation is that Asian Americans are underrepresented not only on Hollywood's stage, but behind its curtain as well. According to a 2020 study by UCLA, the people who make decisions about budgeting, marketing, casting, and directing for films—those who occupy Hollywood's executive suites—are overwhelmingly white.

Across the 11 major and mid-major studios in Hollywood, as of 2020, the Chairs/CEOs were 91% white, the senior management teams were 93% white, and the unit heads, who are responsible for casting and marketing, were 86% white. As of 2019, people of color represented only 9% of studio heads and had less than proportionate representation among total actors at around 32.7%. When you isolate Asian Americans, these numbers get even smaller.

Not only is racism a large factor in the underrepresentation of Asian Americans in Hollywood, nepotism is too. As Hollywood is a historically white industry, those who are able to leverage connections to obtain positions on film sets are usually white. It is not uncommon for producer and director roles, for example, to be secured through family or friend connections—connections built by generational footing in an industry in which other races have only recently begun to accrue success. "There's just a lot of nepotism in general in Hollywood that flies under the radar," Zhou told *The Politic*. He asserted that while not everyone who secures a position in Hollywood through nepotism is famous, it still happens quite frequently. The fact that Hollywood is presently and has historically been a white-dominated industry, combined with the heavy hand of nepotism, means that the majority of people working behind the scenes are white.

What results is a pervasive, normative whiteness in the film industry—in front of the camera, behind the camera, and even editing the footage. In the time Zhou spent working on indie film sets, he noticed that the vast majority of even the supporting characters were white. Zhou noted that the success of EEAAO may be creating an illusion of ease of access for aspiring Asian American actors. "Just because Michelle Yeoh won a Golden Globe and is nominated for an Oscar — I don't think that's an accurate representation of how difficult it is for Asian Americans to get roles. I think that, even though there is this push to have more diversity in terms of the stories that are being told, there is still an undeniable consistency in the fact that the biggest films are always the ones that have a lot of white actors in them," he said. Thomas echoed his sentiment, saying that audiences have been conditioned to watch a white hero.

**IN 2023,** we are coming into a moment of

greater diversity, not just in terms of casting, but in terms of the types of stories being told. Yet, there is still undeniably much progress to be made. Being an Asian American in Hollywood means fighting to create a name for yourself in an industry that has systematically oppressed you—a system that still sidelines Asian American stories. Asian Americans in Hollywood are left in a confusing spot, trying to define their place in an industry that has long excluded them.

De Gennaro dreams of a future with an entirely different definition of representation and diversity. "I want to be at a place where we see representation…just depicting the lives of people. And it's not that important what their identity is other than how it contributes, authentically, to the story," she said. "Diversity doesn't have to be the point," De Gennaro continued, "it should just be something that naturally happens as a byproduct of us trying to tell good stories and trying to feature good actors."

As is evident from its performance at the Oscars, EEAAO is a landmark film for Asian Americans. Some may even call EEAAO a turning point in Hollywood's history. Ahn, however, is cautious with his optimism.

"I've always been suspicious of claiming victory because of the standalone products that receive acclaim," he said. "I think it's really easy to get complacent and say, 'oh, look, Asian American have triumphed in the entertainment industry,' when really, you're not addressing the roots of the issues in Hollywood. If anything, I think claiming victory is just a distraction from all the work that needs to be done…*Everything Everywhere All at Once* is a really good movie… I cried when I was watching it. But I don't think we can just say we've won the good fight. Because we really haven't."

**WHILE THE STATUS** of Asian Americans in the larger entertainment industry may remain somewhat ambiguous, within smaller theater and film communities, meaningful strides are being made. This semester, Ahn is directing an all-Asian production of *Love Letters* at Yale which opens in early April. *Love Letters*, a play by A.R. Gurney, chronicles a decades-long relationship between the wealthy Andrew Makepeace Ladd III and Melissa Gardner—characters who have historically been played near-exclusively by white actors. The halfway point of the play is the passing of the Hart-Celler Act (1965), which overhauled U.S. immigration policy by increasing access for new immigrant groups.

The unspoken undercurrent of Andrew and Melissa's dialogue in *Love Letters* is that they belong completely in America. While they struggle throughout the play, Andrew and Melissa never question the security of their position in their country. Ahn selected *Love Letters* for this very reason. "It's a provocative idea to me that we could have Asian people speak the words of someone who has never questioned their place here when that's so intrinsic to the Asian American identity… The play is about loneliness, but it's also about connecting in that loneliness, which really speaks to the Asian American experience," he said.

*Love Letters* is Ahn's most recent effort to vitalize the Asian American theater community at Yale. Through the play, Ahn is carving out a space for those like him, while acknowledging that lasting power is not built—nor dismantled—overnight. Both Ahn's small-scale production of *Love Letters* and the blockbuster EEAAO are part of the same concerted effort to combat the systemic exclusion of Asian Americans from performing arts and build a community for Asian American artists of all kinds. *Everything Everywhere All at Once* has made great headway: it is up to everyone else to continue the work.

"I've always been suspicious of claiming victory because of the standalone products that receive acclaim."

# THE RIGHT TO RESEARCH

## Undoing the Dickey Amendment's Limits on Studying Gun Violence

BY **CONRAD LEE**

**DR. CASSANDRA CRIFASI** never planned to go into public health. She ended up in the field as, in her words, a "med school reject."

But Crifasi, who is now the Co-Director of the Center for Gun Violence Solutions at Johns Hopkins University, began to recognize the power of public health early in her graduate training. "I heard a lecture on injury prevention, and there was a [speaker] talking about her work on keeping people from getting hurt in the first place. My mind was blown," she recounted. So she stuck with it.

Crifasi's PhD research centered around a topic she had personal experience with: guns. "I personally own firearms. I've owned firearms for a very long time," she said.

She encountered few other researchers interested in guns from a public health perspective. "When I entered the field in 2010, 2011… I think you could count on less than two hands the number of people who were spending all of their time in public health thinking about this," she said.

It was not that the issue was unimportant. In 2010, over 30,000 people died from firearm injuries. But interested researchers were stymied by the 1996 Dickey Amendment, a spending bill provision which prohibited Center for Disease Control (CDC) funds from being used to promote or advocate for gun control policy. In addition, Congress reallocated all 2.6 million dollars of funding that had previously been used to research firearm injuries and deaths. As a result, researchers steered clear of the field for over two decades.

The amendment was revised in 2018 to allow the CDC and other government organizations to resume gun violence research. Since then, research efforts have intensified, but gun violence rates have remained high. Congress has struggled to address the issue through legislation, and evidence-based policies have only taken hold in Democrat-controlled states.

Understanding why the amendment's clarification has not led to a reduction in gun violence requires a trip back to its origins. In the 1990s, the CDC began to investigate the effects of firearms on public health. The National Rifle Association (NRA) objected, loudly. "The first thing they did, they told all their members, 'If

you let this research go on… every single one of you will lose all your guns,' " said Dr. Mark Rosenberg, who led the CDC's firearm research program at the time. "It wasn't true, but this is what they told everybody."

The NRA also advertised that household guns protected families, but Rosenberg found that the opposite was true. His team discovered that guns increased the risk of death in the home by over 200%.

In response to Rosenberg's study, the NRA stepped up their game. In a 1996 congressional hearing, the organization enlisted Representative Jay Dickey (R-AR) to "lead the attack" on the CDC. "They gave him a lot of questions to ask us. And they took things out of context, they made things up. It was truly an ambush," he said.

The hearing led to the enactment of the Dickey Amendment later that year, which prohibited the CDC from using funds for gun control advocacy and slashed existing funding for firearm injury research. Rosenberg and others felt this sent a clear message.

"The CDC was [already] forbidden from lobbying for any legislation. We never did that… But this amendment put people on warning," said Rosenberg. He explained that the amendment gave members of Congress the ability to send letters to research centers and accuse them of violating the amendment. A response could take months of time and effort.

"[The amendment] put people on notice that, if you do this kind of research, we can really harass you," Rosenberg said.

The passage of the Dickey Amendment had a "chilling effect on the willingness of administrators to invest funds in this kind of research," said Dr. Andrew Morral, Director of the National Collaborative on Gun Violence Research at RAND Corporation. "It sent a strong signal that [the CDC] would need to do firearm violence research at risk of their budget and that any future research might be interpreted as policy advocacy… People didn't feel it was safe to do research."

Morral cited a 2017 study which determined that the quantity of firearm injury studies published in academic journals represented less than 5% of the volume expected for a public health issue with a death rate of its magnitude. "There was not a volume of research commensurate with the size of the problem," he said.

Dr. Alexander McCourt, an Assistant Professor in the Department of Health Policy and Management at the Johns Hopkins School of Public Health, noted that the Dickey Amendment also dissuaded new professionals from entering the field.

"We had new doctoral students that didn't want to do this type of research because there was no government funding attached," McCourt said. "Especially for students and younger researchers, it's hard when… you don't have the resources to go gather [data] yourself."

Rosenberg saw the link between the Dickey Amendment and the lack of firearm research. He made it his mission to fix the problem. Eventually, he got the Dickey Amendment revised through the help of an unlikely ally: Jay Dickey himself.

Shortly following Rosenberg's 1996 hearing with Dickey, a legislative assistant from Dickey's office invited Rosenberg to discuss Rosenberg's data. Rosenberg did not expect to meet directly with Dickey. But when the two got a chance to talk, they steered clear of guns. Instead, they focused on their children.

"The next thing I knew, he had invited my son and his whole class to come up and tour Congress," Rosenberg said.

Rosenberg returned the favor by helping Dickey's daughter get a job in Atlanta. The two began to trust one another.

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**Dr. Mark Rosenberg, the CDC's firearm re program at the time.**

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other, and actually came to love each other," Rosenberg said of their relationship. "And Jay Dickey decided that he had made a mistake."

Dickey began to work with Rosenberg to restore gun violence research. The pair co-wrote multiple op-eds in the *Washington Post*.

Dickey died in 2017, but he left Rosenberg with an important lesson. "He taught me that people who owned guns were afraid that the research would lead to taking away all their guns. And he taught me that you need to let people know that that's not our goal."

Working alongside Dickey's ex-wife, Betty, Rosenberg finally managed to clarify the Dickey Amendment in 2018. The revised version still prohibited gun control advocacy, but it explicitly protected the CDC's right to investigate gun violence prevention. Congressional funding for CDC research resumed.

Rosenberg felt it was important that the Dickey Amendment was not fully repealed. "For congresspeople, representatives, senators who wanted to support the research but didn't want their constituents to think they were promoting gun control, the Dickey Amendment was the perfect thing to protect them," he said.

With the amendment clarified, gun violence research accelerated. "By summer [2022], I estimated there were a hundred funded projects that were collecting data and analysis," said Morral.

He highlighted a couple new studies. One project, funded by the NIH, selected random vacant lots in Philadelphia and beautified them at a low cost. The study determined that gun violence was reduced in these greened areas. Similar greening movements in other cities across the U.S. have achieved comparable results.

Another study of firearm purchase records in California found that suicide rates for firearm owners were much higher than expected when controlling for demographic variables. The difference was especially large for women and new gun owners. Although researchers have long suspected an association between gun ownership and suicide, Morral felt that this study confirmed the relationship. "This is stuff we didn't know [before]," he said.

Morral claimed these new studies were a direct consequence of the changes to the Dickey Amendment. "There are some studies that an economist working at a desk with available data can do," he said. "But randomized control trials… cannot be done without [external] funding."

In November 2022, Morral helped the National Collaborative on Gun Violence hold its first National Research Conference on Gun Injury Prevention. The conference attracted over 600 attendees, including Crifasi. "There were 300 presentations," Morral said. "It was like nothing that we'd seen before."

With all of this new research activity, gun reform activists around the country are newly equipped to advocate for stronger legislation. One such activist is Sari Kaufman '24, the co-founder of the Students Demand Action chapter at Yale and a survivor of the 2018 Marjory Stoneman Douglas High School shooting. She told *The Politic* that the amendment's clarification has led to new publications and data which have bolstered the work of gun reform advocates.

"The CDC has been able to start this research up again, and now it's clear that guns are the leading cause of death for children and teens," she said. She added that new research has quantified the impact of gun violence for activists in ways that were not possible in the past.

But newly-informed activism has led to few gun policy changes on a federal level. The only notable piece of legislation is the 2022 Bipartisan Safer Communities Act, which enhances

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federal background checks and incentivizes states to adopt red flag laws. It was the first gun control bill to pass Congress since 1994.

Movement at the national level might be slow, but evidence-based policy solutions for gun violence prevention are finding a home in state legislatures, according to McCourt.

"We're seeing more states adopting laws that are really rooted in evidence," he said. He mentioned a recent permit-to-purchase law in Oregon. He and Crifasi have found that laws like the one in Oregon reduce "multiple types of gun violence, including homicide, suicide and mass shootings."

Crifasi added that state legislatures in Washington and Delaware are debating similar permit-to-purchase laws. "It will take time for these policies to take effect, but things are happening," she said. "Things are moving, more so in the past few years than they did in the 30 years prior."

**"Things are moving, more so in the past few years than they did in the 30 years prior."**

But not all states are moving towards evidence-based policies, according to Morral. He described recent legislative activity as "bifurcated."

"There's mostly red states that are changing their laws rapidly to make gun restrictions more permissive, and there's mostly blue coastal states that are making legislation in the opposite direction," he said.

Morral added that the Supreme Court's 2022 decision on *New York State Rifle & Pistol Association v. Bruen*, which declared concealed carry permit requirements unconstitutional, has impacted legislative action in some Democratic states. "New York, Rhode Island, Connecticut and California… are scrambling to rewrite their laws in a way that is going to compensate for the risks of having more permissive concealed carry rules," he said.

Polarization at the state level makes the national future of the gun violence prevention movement unclear. But Crifasi has stayed optimistic.

"You have to be optimistic working in gun violence prevention," she said. "It's a hard field to work in. You have to feel like there is a chance for real change."

Crifasi feels that her unique perspective as a gun owner and researcher puts her in an excellent position to connect with those on both sides. "I can engage with gun owners to discuss research topics that I might not have been able to if I didn't [understand]… why some people might choose to own guns," she said.

Like Crifasi, Kaufman remains hopeful. She is encouraged by recent legislative reforms. "Seeing the Bipartisan Safer Communities Act pass this summer showed me that progress and change is incremental, but it can happen," she said.

"The sad truth is that gun violence isn't going to stop," Kaufman conceded. But, in her view, "these little tiny things add up."

Kaufman acknowledged that the politicization of the CDC and government-funded research, especially in the wake of the coronavirus pandemic, has made progress challenging. However, she feels that the observable impact of the gun violence crisis overrides this distrust.

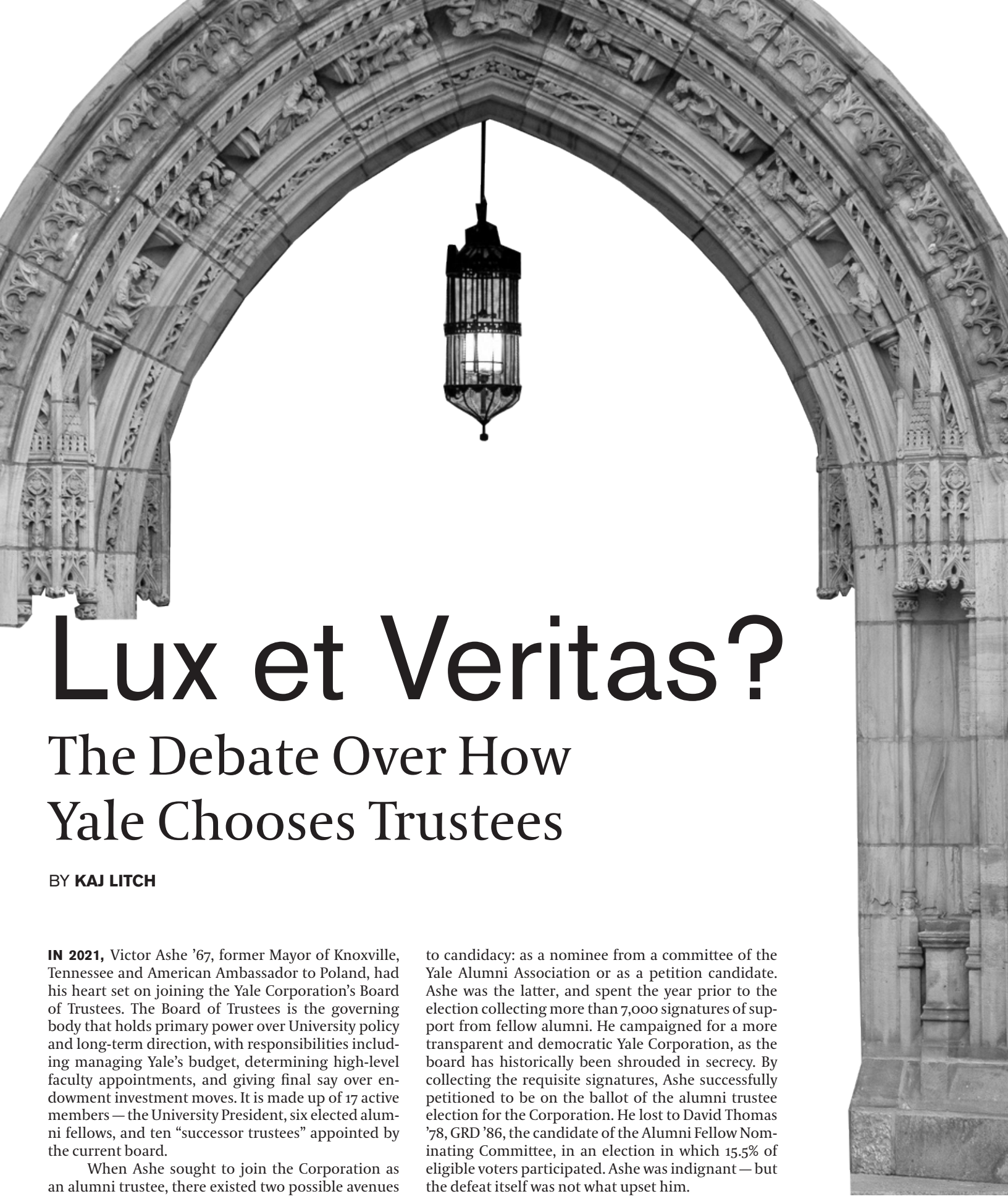
"The difference here is that it's not an issue that's abstract," Kaufman said. "Because we can see the impacts firsthand as an average citizen in the United States, it speaks to the volumes of the statistics and the research that's coming out."

Rosenberg sees the problem differently. "I think we just learned from the anti-vaccine movement that… it's not enough to know the truth and say the truth," he said. "You have to have an active engagement and dialogue with the people who are skeptical and who question the science."

He stressed that research by itself is not enough to change minds.

"It's not enough to publish the results," he said. "We have to go to the community and talk to people to share the findings, to explain the findings and to let them know the steps we've taken to make sure that it's valid scientific research and not biased advocacy."

He emphasized that the high stakes require action. "We can do this," he said. "Because our lives depend on it."



# Lux et Veritas?

## The Debate Over How Yale Chooses Trustees

BY **KAJ LITCH**

**IN 2021,** Victor Ashe ’67, former Mayor of Knoxville, Tennessee and American Ambassador to Poland, had his heart set on joining the Yale Corporation’s Board of Trustees. The Board of Trustees is the governing body that holds primary power over University policy and long-term direction, with responsibilities including managing Yale’s budget, determining high-level faculty appointments, and giving final say over endowment investment moves. It is made up of 17 active members — the University President, six elected alumni fellows, and ten “successor trustees” appointed by the current board.

When Ashe sought to join the Corporation as an alumni trustee, there existed two possible avenues to candidacy: as a nominee from a committee of the Yale Alumni Association or as a petition candidate. Ashe was the latter, and spent the year prior to the election collecting more than 7,000 signatures of support from fellow alumni. He campaigned for a more transparent and democratic Yale Corporation, as the board has historically been shrouded in secrecy. By collecting the requisite signatures, Ashe successfully petitioned to be on the ballot of the alumni trustee election for the Corporation. He lost to David Thomas ’78, GRD ’86, the candidate of the Alumni Fellow Nominating Committee, in an election in which 15.5% of eligible voters participated. Ashe was indignant — but the defeat itself was not what upset him.

"Four hours after the results were announced from my election, the Yale Corporation abolished the petition process," he said.

Ashe, alongside Don Glascoff '67, filed a lawsuit over the abolition in 2022. The suit alleges that the removal of the petition process violated Yale's contractual responsibilities to alumni, as outlined in the Yale Charter established by the Connecticut General Assembly, including voting rights and the rights of free expression of opinion. For Ashe, the action represented a concerted effort to stymie calls for increased transparency within the Corporation, eliminating the possibility for anyone but hand selected candidates to join the board.

Ashe saw it as an assault on participatory governance. "What I cannot accept is the Corporation's removal of mechanisms that prevent it from becoming fully self-perpetuating. Their action contradicts and undermines the entire notion of lux et veritas," Ashe told *The Politic*.

"What I cannot accept is the Corporation's removal of mechanisms that prevent it from becoming fully self-perpetuating. Their action contradicts and undermines the entire notion of lux et veritas."

Also running by petition in 2021 was Maggie Thomas ENV '15. Thomas was determined to mobilize Yale alumni to contribute democratically to the governance of Yale. Her campaign advocated for transparency and inclusive governance as important steps forward, especially in the University's climate policy and gradual withdrawal from investment in extractive industries.

"We saw the way that Yale's endowment was being managed as out of step with what most alumni wanted, in terms of investment choices, but also of including the people who have a stake in the organization in decision making," said Scott Gigante '16, GRD '21, the co-founder of Yale Forward, Thomas's campaign organization.

Though Thomas ultimately withdrew from the election after being appointed to the White House as Chief of Staff in the Domestic Office of Climate Policy, her campaign contributed to the legacy of environmental concerns in connection with the Yale Corporation. In 2012, the student activism group Fossil Free Yale was formed, advocating for Yale's divestment from the fossil fuel industry. In the decade following, student groups including the Endowment Justice Coalition (EJC) engaged in the campaign, organizing occupations of the Yale Investment Office, high-profile teach-ins, sit-ins, and strikes.

In October 2020, shortly after Thomas's campaign reached the crucial threshold of roughly 4,400 signatures to get on the ballot, Yale formed the Committee of Fossil Fuel Investment Principles. The University adopted many of the ideas of Thomas's campaign platform. The commission developed criteria for fossil fuel divestment, providing recommendations to the Yale Investment Office for divestment from many producers found in violation of their ethical investment policies. "I have faith, in the understanding that Yale's alumni and the community at large want to see action on these topics, that Yale will continue to move in the right direction," said Gigante.

Despite these steps forward, some have questioned their sincerity and impact. "The problem is the Yale Corporation is extremely secretive, or just completely obscured — we have no idea exactly how much of the endowment is invested where, there's no accountability," Tara Bhat '25 of the EJC said. As evidence, many point to a key provision of the Yale Corporation's regulations: "Minutes of the Yale Corporation and its committees are closed for fifty years."

Ashe and Thomas were the first to gather the necessary petition signatures for candidacy in 18 years. Thomas was the second woman ever to do so. In 1985, Heidi Hartmann GRD '74 successfully petitioned onto the ballot; however, alongside five nominated candidates from the Yale Alumni Association, she lost to former U.S. Senator Paul Tsongas LAW '67. At the time, there was a flat requirement of 250 signatures. The year following Hartmann's petition, the corporation raised the petition signature requirement. Two years later, they raised it again, effectively blocking any further petition campaigns for more than a decade.

A drastic increase in the barriers to entry in democratic governance followed the very year after the first woman successfully petitioned onto the ballot. The year of the second, they removed the process altogether. Women have served and do serve on the board, but they have not been petition candidates. The minutes that would reveal the Corporation's intentions behind the first move will remain sealed for another ten years, the second until 2071. "To have that left to speculation is extraordinarily damaging to the community's trust in the good governance of the Corporation," said Gigante.

For some on the board, the question of public minutes is a complicated one. Senior Trustee Josh Bekenstein '80, who has served on the board since 2013, has had extensive experience on governing boards as a co-chair of Bain Capital.

"I'm not aware of organizations that have boards of directors that essentially operate in the public. I don't think it's practical or advisable, other than for the government, and most people don't think the government operates as smoothly as they would like," Bekenstein said.

His comment raises a central question: to what extent is the Yale Corporation a representative body? For Bekenstein, the distinction is clear. His role as a Trustee

"In a moment where democracy and inclusive governance is increasingly under threat around the world, to see Yale pushing these aside when it doesn't suit them was deeply painful."

is as a steward. "We do not represent any specific people or groups," he said. "That's just not the way you run a great institution—you step back. I've not been involved in any not-for-profit or for-profit institution that tries to have representatives of different groups; we have a fiduciary duty to do what's in the best long-term interests of Yale."

From this perspective, the removal of the petition process is a way to ensure alumni are able to choose among people that they know have been well thought through by a committee. "That's the best way to make sure that we get really good people to be trustees," said Bekenstein. "We don't think the best people are going to want to do this as a political election process. It's just not the way most not-for-profits are run."

For Ashe, the removal of petition candidates is far more problematic below the surface. As a life-long public servant, Ashe believes in the value of political elections. They require candidates to prove their commitment, to put forward policy platforms, and earn support, meaning alumni can make informed decisions. "You and I are entitled to know what they stand for," he said. "Because if you don't know where they stand on issues, how do you make a decision?" When democratic processes are disregarded, for Ashe, the Corporations integrity is damaged. "If you truly believe in the right to vote, then you support it, you don't repeal it," he said.

These issues were the subject of a referendum that was opened on January 30 by the Yale College Council (YCC), supported by the Endowment Justice Coalition. The effort called for greater inclusion of the University's community in its governance, and allowed students to vote on whether the Yale Corporation should be further democratized through the inclusion of student and faculty voices in electing trustees. "While undergraduate students only remain at Yale for a few short years, they still keenly feel the impact of the Corporation's decisions," Leleda Beraki, President of the YCC, wrote in an email to *The Politic*. Because of this, Beraki believes the inclusion of student voices is "valuable in both reflection upon past decisions and considerations for future ones."

In contrast, Bekenstein pointed to the foundational role of the Corporation as directing long-term vision. "The board feels like we're responsible to the current students of Yale, and to the students of Yale for the next 300 years. We don't run Yale day to day. Yale is run by the Deans and the officers and the rest of the folks that are responsible for running the University. The role of a board is to provide guidance," he said.

For many, however, their lack of transparency in this guidance is emblematic of a pattern within the Corporation, whereby the values of democratic processes — equal access to information, open deliberation, and participation — are not widely embraced. And they don't have to be. Yale is private, and its governance structure was not intended to reflect a representative democracy. However, in a position of influence, many urge Yale to take hold of the opportunity to be a bastion of the democratic values that we all aspire to uphold. "In a moment where democracy and inclusive governance is increasingly under threat around the world, to see Yale pushing these aside when it doesn't suit them was deeply painful," said Gigante.

This sentiment is strong within Yale's student body. The YCC referendum revealed overwhelming support for student voices to be included in the democratic selection of trustees, with almost 90 percent of referendum participants voting affirmatively for trustees to be elected and students, professors, and staff to be eligible to participate in those elections.

The referendum, however, was in no way binding, and Bekenstein was clear in stating the Board's intentions. "We don't have any current plans for changing Yale's governance because we think that the structure is a good structure," he said. Bekenstein also emphasized that he feels the goal of trustees can be overlooked, adding, "The trustees are all alumni, and they are hugely committed to the future of Yale. That is what it takes to be a trustee of this institution."

Change is rarely easily accepted. "The YCC understands that it's very unlikely that something will happen quickly, or something will happen at all, that would drastically change how the Corporation functions," said Bhat.

Yet even if change to the Yale Corporation is not imminent, most campus organizing is a long game. "One really crucial part of building a sustained push for greater transparency that will transcend the classes of 24, 25, 26 is to ensure people actually know how this stuff works, that they feel qualified to have opinions about it," said Naina Agrawal-Hardin '25 of the EJC. Bhat, the other EJC organizer, agreed. "It has become something to discuss on campus. And that's the first way to create change," she said.

Ashe similarly commended the YCC referendum for prompting discourse on an issue that has not historically been well understood. He also saw hope in his lawsuit that will be argued this spring. "For the first time in Yale history, they will have to explain under oath, in a court of law, why they've done what they've done," he said. It may prompt further discussion, and a renewed push for open governance and connection with the Yale community.

Many students and alumni are eager to have a meaningful say in Yale's highest governing body, and the Corporation has made it clear they are not interested in adopting a more democratic structure. But there's power in those continued conversations — in and of themselves, the conversations are a democratic ideal.

# Representing Ukraine

## A Conversation With Ambassador Sergiy Kyslytsya

BY **LUCAS GIMBEL**

*Sergiy Kyslytsya is the Permanent Representative of Ukraine to the United Nations and Ukraine's Ambassador to Trinidad and Tobago. Before arriving at the UN, he served as Ukraine's Deputy Minister of Foreign Affairs from 2014, during Russia's annexation of Crimea, until 2019. He was awarded the Order of Merit of the III degree, which is given to individuals of outstanding achievement in Ukraine, for his many years of diplomatic service and role in international cooperation. Kyslytsya agreed to be interviewed by* The Politic *after attending a talk hosted by Lester Crown Professor Jeffrey Sonnenfeld at the Yale School of Management.*

**I WANTED TO START OFF WITH A BROAD QUESTION ABOUT THE WAR IN UKRAINE, SINCE WE ARE ON THE EVE OF ITS 1-YEAR ANNIVERSARY. COULD YOU GIVE OUR READERS YOUR ASSESSMENT OF HOW THING HAVE CHANGED SINCE RUSSIAN TROOPS ARRIVED AND WHERE THINGS MAY BE GOING?**

First of all, we should recall that while it is the first anniversary of the full–scale invasion, it has really been more than eight years since the war started. The war basically began in 2014, when the Russians moved into Crimea and the eastern part of Ukraine, in the regions of Donetsk and Lugansk. Recently, at least two decisions by two major international courts established that there has been a Russian war effort [since 2014]. These decisions established that the so-called "separatists" [pro-Russian paramilitary groups operating in Ukraine] were controlled by the Russians, who supplied them with weapons and money. Effectively, the court in Amsterdam established that there already was a conflict between Russia and Ukraine. A decision by the European Court of Human Rights in Strasbourg similarly concluded that Russia invaded the eastern part of Ukraine, long before the full-scale invasion in February 2022.

Within the scope of my responsibility, I can assert that the reaction of the international community has been very solid. It is apparent that before the invasion [Putin] believed the democratic community might have reacted negatively. But if the invasion was successful, he thought the world community would swallow the war. He miscalculated. We have achieved a strong sense of unity, not only among our trans–Atlantic allies, but also in the General Assembly Hall [of the United Nations], where that support has been clear on several occasions, including in March and October of 2022. I think [the war] may become a decisive point in the history of the United Nations and in how [people] see 21st-century global security architecture. When it comes to the United Nations, the war has proven that it doesn't work because it was not able to prevent one country from launching a full–scale invasion against a neighboring country.

**WHAT ARE THE BIGGEST FLAWS OF INTERNATIONAL ORGANIZATIONS LIKE THE UNITED NATIONS AND THE INTERNATIONA CRIMINAL COURT THAT PRECLUDE THEM FROM ACCOMPLISHING THESE GOALS?**

I think it is kind of an overstatement to suggest that international law and the United Nations cannot prevent [conflict]. They can. But there are specific cases where the design of the United Nations or the role of international law cannot stop regimes, like the one that exists today in Moscow. The thing is, no matter how wonderful and great and well–worded international rules and conventions are, they still rely on the readiness and willingness of international actors to comply with the obligations that those actors themselves, endorsed, signed, or approved. And, on the other side, [these conventions] rely on the readiness of the international community to enforce its laws and to punish the violators.

That's exactly what I said in the last Security Council meeting, when I referred to the guru of nonviolence, Mahatma Gandhi, who said that abstinence from violence makes sense only if there is the power to punish the violators… I don't believe that we will ever, in the real world, reach the point of full compliance with international law. However, I hope we will draw lessons from what happened in the last twenty-five years, when we — I mean all of us, Ukraine, Europe, North America, the global community — allowed Putin to build a dictatorship that is totally beyond the control of whatever international norms we have.

The thing is, no matter how wonderful and great and well–worded international rules and conventions are, they still rely on the readiness and willingness of international actors to comply with the obligations that those actors themselves, endorsed, signed, or approved.

**HOW COULD THE UNITED NATIONS BE IMPROVED TO A POINT WHERE, IF A RESOLUTION WAS PASSED, IT WOULD BE FOLLOWED BY SOMEONE LIKE PUTIN?**

I don't want to offend anyone in the United Nations, but I think we grew accustomed to a very significant degree of hypocrisy in international relations and, in particular, multilateral organizations where we hide behind our common desire to make unanimous decisions. The benefit of making decisions by consensus is that, if it is truly a decision of consensus, then everyone is behind it. This is absolutely not true, in my opinion, because consensus is not [unanimity], but rather the low-

We need to abandon consensus — the starting point is to start being hypercritical and have the guts to call a spade a spade.

est common denominator that allows for a decision to be approved. A significant percentage of the decisions we make in the United Nations are so low in terms of their denominator that they hardly serve any purpose.

When it comes to conflict, the United Nations is not ready [to achieve consensus], because there are a small number of countries, like Russia, Syria, and North Korea, that would never agree to make decisions that are in full accordance with the UN Charter. So, really, we need to abandon consensus — the starting point is to start being hypercritical and have the guts to call a spade a spade.

We will have a Summit for the Future — an exceptionally ambitious name for a summit in 2024 — and, from what I know, the Secretary General himself may present a new concept of international security. I'm looking forward to that summit, and to seeing if the UN Secretariat leadership will be courageous enough to factor in the events of the last year in their concept paper on international security.

**COUNTRIES LIKE CHINA AND INDIA HAVE CONDEMNED THE WAR ON PAPER, YET HAVE FAILED TO SUPPORT UKRAINE DIRECTLY OR EVEN TO COMPLY WITH WESTERN SANCTIONS. CAN YOU DISCUSS UKRAINE'S RELATIONSHIP WITH THESE TWO POWERS, AND WHAT YOU THINK OF OTHER NATIONS THAT MERELY PAY LIP SERVICE TO UKRAINE?**

We should not simplify the positions of these two countries, nor those of other countries. China is a fully–fledged, legitimate, and, like Russia, permanent member of the Security Council. China is a global player. Although I've heard Chinese officials saying 'oh, don't overplay our global role, we just want to develop economically,' they are a global power, given their economic and financial role and their impact on global affairs. They are, after all, a fully–fledged, permanent member [of the Security Council] with a particular responsibility for maintaining international peace and security. In fact, if one reads carefully, the UN Charter is a kind of deal between the permanent members and the rest of the community, who trust the permanent members with special rights in exchange for their special role in the maintenance of international peace and security. You don't ask Germany or Italy, who are not permanent members, why the hell they're not that active, because it is up to the permanent members to act.

India is not a permanent member, but India is one of the largest economies not only in the region, but globally. India is a rapidly developing economic power that concluded its membership on the Security Council on December 31st, 2022. [India was on the Security Council] for the last two years — for the entire year of the Russian full–scale invasion of Ukraine. Yes, they did not always vote with [Western powers], and especially the General Assembly on some occasions, but they never supported the Russian Federation.

We have to make this distinction clear. The fact that [India] did not support some of the decisions [by Ukraine's Western allies] does not put them on Russia's side.

I decisively and categorically reject statements that ask, 'why the hell did China vote the Russian way?' China does not vote the Russian way. China has a clear set of national interests, and the fact that Chinese national interests may not coincide with American interests or with European interests does not make China a pro–Russian country. China has its own grievances when it comes to the Western world and its politics and actions towards China. In this conversation, we are not going to explore who is right and who is wrong. When it comes to foreign policy and other issues, [NATO] and China are on different pages, which does not make China pro-Russia, per se.

**LET'S CIRCLE BACK TO SOMETHING YOU JUST MENTIONED, WHEN YOU CALLED CHINA A LEGITIMATE MEMBER OF THE SECURITY COUNCIL, IN CONTRAST WITH RUSSIA. I THINK THAT A LOT OF PEOPLE DON'T UNDERSTAND THAT DISTINCTION. RUSSIA TOOK THE SOVIET UNION'S PERMANENT SEAT ON THE SECURITY COUNCIL AFTER ITS DISSOLUTION. COULD YOU WALK US THROUGH HOW THAT HAPPENED, AND TELL US WHETHER STEPS ARE BEING TAKEN TO ADDRESS RUSSIA'S SEIZURE OF A SEAT THAT, IN THEORY, WAS DESIGNED TO REPRESENT ALL OF THE FORMER MEMBERS OF THE USSR?**

It's very difficult to cover this in a couple of minutes. Even if we put aside the issue of how the Russian Federation landed in the Security Council in 1991, we must answer the question: are Russian actions, in particular from the 24th of February onwards, compatible with the criteria set forth in the UN Charter for its permanent membership? The answer is clear: Russian actions are not compatible with the criteria for membership. Practically every other country would be suspended from the United Nations if they launched an aggression of [Russia's] scale, with such an enormous number of people killed, wounded, and displaced.

Russia exploits the right of permanent membership, and, since Russia is quote-unquote "protected" by its nuclear

status, actions to expel Russia or strip it of its rights are immobilized by the Russian veto. So there is not only the issue of how Russia landed in the Security Council, but there's also the fact that the General Assembly and the Security Council are absolutely emancipated — emancipated! — from their power to address the issue of Russian actions.

What happened [when the Russian Federation acquired its seat on the Security Council] was very unfortunate. The West was not ready to deal with the speed of the disintegration of the Soviet Union; there were no contingency plans. And practically every nation's government — be it Washington, London, Berlin, Paris, or Beijing — was worried about what would happen with this huge territory: the largest country on the planet, with the largest nuclear arsenal, and with huge debt to international lenders. I think that they were happy to reach this arrangement, which allowed Moscow to be the continuation of the Soviet Union, both in terms of nuclear arsenals, Soviet debt, and the Soviet seat in the Security Council. They acted in what they probably believed were the interests of the entire global community. This does not change the legal position of my government [on the Russian Federation's inheriting of the USSR's seat on the Security Council]. We believe that the way Russia was allowed to take the seat was legally incorrect.

**IN WHAT WAYS HAS RUSSIA'S POSSESSION OF THE USSR'S SEAT ON THE SECURITY COUNCIL IMPEDED UKRAINE'S EFFORTS TO WAGE WAR, TO MAKE PEACE, AND TO PROTECT ITS CITIZENS?**

Well, Russia vetoed the decisions that we put forth at the beginning of the war in 2014. Russia vetoed the draft that we sponsored with our partners right after the full–scale invasion in 2022. But it has also impacted us beyond that. Look, for example, at the situation with the Iranian drones. In that case, there was a decision by the Security Council that imposed non–proliferation of weapons on Iran. So Russia is not only blocking decisions but also violating adopted decisions, by receiving military assistance and materials from Iran — a direct violation of UN sanctions against the Iranian regime. We demanded that the UN send an inspector to investigate the Iranian drones to confirm their origin, and, by doing so, confirm that Russia violated the Security Council resolution on Iran. But Russia blackmailed both the Security Council and the Secretary General, because it is up to the Secretary General to launch such an investigation. In doing so, Russia undermined the Security Council, the institution that imposed the sanctions, which has implications well beyond the current war. It sets a dangerous precedent that the Security Council can be disregarded.

> The war has proven that [the United Nations] doesn't work because it was not able to prevent one country from launching a full–scale invasion against a neighboring country.

**IS THERE ONE THING THAT YOU FEEL PEOPLE MISUNDERSTAND ABOUT THE CONFLICT OR YOUR WORK IN THE UNITED NATIONS?**

First of all, I want to say that I'm very grateful to the people of the United States because I believe there is very strong support among Americans for Ukraine, for the defense of its territorial integrity, sovereignty, and its desire to remain an independent and free nation. Of course, the United States is a democratic nation. And, indeed, in a democratic nation, there are always a variety of opinions. What I would appreciate is if all those opinions were well informed and based not on misleading facts and disinformation. For an average American who is otherwise a very good citizen, to spend time learning about international relations and the United Nations requires quite an effort.

I think it is the duty of every government to provide all its citizens with unimpeded access to verified information. It's not about indoctrinating citizens. It's about letting citizens make their own decisions, based on truth and verified information. I think the only thing that disappoints me when it comes to Americans, as with many Europeans, is that often they are — we all are — misled by disinformation. And, as you know, the Russians are very capable spreaders of disinformation. Russia is not bound by any ethics, and as a result we are losing the battle on disinformation.

*This interview has been condensed and edited for length and clarity.*

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